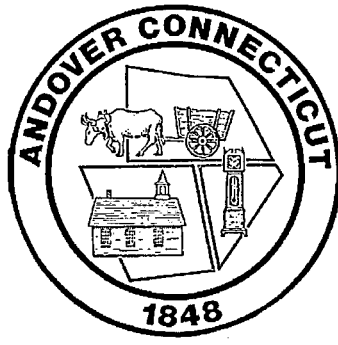




Town of Andover, Connecticut

TOWN

ORDINANCES

(Passed by Special Town Meeting April 23, 2024)

(Published Rivereast April 26, 2024)

(effective 21 days after Publication)

TOWN OF ANDOVER, CONNECTICUT

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(Rev 12-2024)

ORDINANCES BY LAWS, RULES AND SPECIAL ACTS

TOWN OF ANDOVER, CONNECTICUT

CONNECTIUT ZONING ENABLING ACT ADOPTED

49-01

Moved and second that the Town of Andover adopt the Connecticut Zoning Enabling Act.
(Chapter 43 of the 1949 Revised General Statutes.)

Voted: Effective July 6, 1949.

TOWN ROAD SPECIFICATIONS

53-01

Moved and seconded that all new roads a minimum of 50 foot right of way with the necessary water rights for drainage; that a gravel surface 12 inches thick, 20 foot wide with 2 foot gravel shoulders, with 75 foot radius at the end and that plans be approved by the Selectmen before being constructed.

Voted: Effective January 8, 1953.

ORDINANCE CONVICTING ANY PERSON LEAVING UNATTENDED OR ABANDONING ANY ICEBOX OR REFRIGERATOR

54-02

Any person convicted of leaving unattended or abandoning any icebox, refrigerator or similar airtight device without first removing the door or destroying the lock shall be fined not more than \$25.00.

Voted: Effective July 20, 1954.

AN ACT OF CONCERNING BAZAARS AND RAFFLES

55-03

A Referendum held for the adoption or rejection of Public Act No. 409 "An Act Concerning Bazaars and Raffles" as passed by the 1955 session of the General Assembly: "For allowing the operation of bazaars and raffles."

Voted: Effective August 23, 1955.

CAPITAL REGION PLANNING AGENCY TOWN OF ANDOVER MEMBERSHIP

59-02

Moved and seconded the Town petition the Capital Region Planning Agency requesting the inclusion of the Town of Andover in the area of operation of said Agency.

Voted: October 5, 1959.

CIRCUIT COURT, MANCHESTER, REQUEST TO INCLUDE TOWN OF ANDOVER

59-03

Moved and seconded the Town request the Executive Secretary of the Judicial Department to include the Town of Andover in the circuit of the new Circuit Court which will hold sessions in Manchester.

Voted: October 5, 1959.

ORDINANCE RE: JOINING CAPITOL REGION PLANNING AGENCY

60-01

Resolved that the Town of Andover adopt sections 8-31a to 8-37a, inclusive of the 1959 Supplement to the General Statutes, and join the Capitol Region Planning Agency.

Voted: May 7, 1960. Effective June 10, 1960.

REPEAL OF CERTAIN ORDINANCES THAT ARE SUPERSEDED AND NO LONGER APPLICABLE

It is found by the Board of Selectmen of the Town of Andover that the following ordinances are superseded or repealed, are no longer applicable and they shall therefore be **REPEALED** and **DELETED** from the compilation of ordinances and special acts required by Connecticut General Statutes section 7-148a displayed on the Town of Andover website and elsewhere:

Ordinance #56-02, "**CHANGE OF THE FEE FOR AND APPEAL TO THE ZONING BOARD OF APPEALS,**" voted by Town Meeting on April 5, 1956; and

Ordinance #60-02, "**ORDINANCE FIXING TERMS AND METHOD CHOOSING REPRESENTATIVES ON CAPITAL REGION PLANNING AGENCY,**" voted by Town Meeting on May 7, 1960, Effective June 10, 1960.

Approved at the September 28, 2021 Special Town Meeting.

ORDINANCE CONCERNING NIGHT PARKING AND PARKING DURING WINTER STORMS ON PUBLIC HIGHWAYS WITHIN THE TOWN OF ANDOVER.

61-01

SECTION 1. No person shall leave an unattended vehicle stationary upon any public street or public highway in the Town of Andover between the hours of 2 o'clock am and 5 o'clock am of any day or at any time during or after any period of snowfall or icy conditions while said highways are hazardous to traffic.

SECTION 2. The parking of vehicles in such places and at such times is hereby declared to be a nuisance.

SECTION 3. Whenever any vehicle shall be found parked upon such street or highway at a time when parking is not permitted, such vehicle may be removed and conveyed by, or under the direction of a police officer, sheriff or constable designated by the First Selectman by means of towing same, or otherwise, to a vehicle pound. Before the owner or person in charge of such vehicle shall be permitted to remove the same from such vehicle pound, he shall furnish to the First Selectman (or such police officer, sheriff or constable as the First Selectman shall designate) evidence of his identity, ownership or right of possession and shall sign a receipt for the same, and he shall pay the costs of removal, plus the reasonable cost of storage for each

day or portion of a day, said vehicle is stored in the vehicle pound and shall pay a fine of ten (\$10) dollars for such illegal parking.

The owner of any impounded vehicle shall be duly informed as to the nature and circumstances of the violation on account of which such vehicle has been impounded. In case protest is made against the payment of any towing or storage fees, the person in charge of said pound shall mark upon the receipt evidencing payment of the towing and storage fees the words "Paid under protest." In such case it shall thereupon be the duty of the First Selectman, police officer, sheriff or constable designated by him having knowledge of the facts to forthwith institute the proper proceedings in the Circuit Court, charging the owner or driver of such vehicle with that violation of the ordinance or traffic regulations on account of which the vehicle was impounded. In the event the owner or driver of said vehicle is found not guilty of the offense charged he shall be reimbursed the sum so paid under protest by the Town of Andover.

It shall be the duty of the First Selectman, sheriff, police officer or constable, as he shall designate, to keep a record of the names of all owners of vehicles impounded, the nature and circumstances of such violation and the disposition of each case.

SECTION 4. The First Selectman is hereby authorized to create a vehicle pound, or pounds, to which automobiles and other vehicles may be removed by a police officer, sheriff, or constable, or under the direction of a police officer, sheriff or constable, in the manner hereinafter provided. Such pound, or pounds, shall be such storage garage, or garages, or such other appropriate places as may be designated by the First Selectman. Before any such garage or place shall be authorized to be a vehicle pound as provided herein, such garage or designated place of storage shall furnish to the First Selectman satisfactory evidence of insurance coverage to protect the Town of Andover from any claims for damages arising from the towing or storage of any impounded vehicle.

SECTION 5. This ordinance shall become effective fifteen (15) days after publication as required by Section 7-157 of the General Statutes of Connecticut, Revision of 1958. Published October 5, 1961. Effective October 20, 1961.

Amendments to Section 1 and Section 3 passed at Special Town Meeting March 25, 1966. Published in the Manchester Herald April 8, 1966. Amendments become effective 15 days after publication.

AN ORDINANCE CONCERNING LICENSING OF PEDDLERS AND ITINERANT VENDORS WITHIN THE TOWN OF ANDOVER.

62-02

SECTION 1. On and after the effective date of this ordinance no person, with or without a team or vehicle, except those exempted by the Statutes of the State, shall vend or hawk upon the public streets any goods, wares, or other merchandise at public or private, sale or auction, or vend or peddle such articles from house to house within the Town limits, unless he shall have obtained a license to do so from the Town Clerk. This section, however, shall not apply to occupants of stores or shops within the Town, or to charitable, educational or religious and non-profit civic organizations within the Town.

SECTION 2. The fee for such a license shall be \$5.00 for each year or portion thereof. The Town Clerk shall retain \$2.00 from the fee for each license issued. Each person so license shall be required to exhibit his license at the request of any citizen. All licenses shall be good for one year after the issuance, but no such license shall be issued by the Town Clerk until the weights and measures of the applicant, if any such are used by him in his business, have been approved and stamped by the State Sealer of Weights and Measures and a certificate to the effect from the State Sealer of Weights and Measures has been exhibited to the Town Clerk.

SECTION 3. The Town Clerk, before issuing a license under authority of this ordinance, shall refer the applicant to the Board of Selectmen who shall cause such investigation of the applicant's business and moral character to be made as it deems necessary for the protection of the public good. If as a result of such investigation the applicants business or moral character shall be found to be unsatisfactory the Board of Selectmen shall transmit its disapproval and its reasons for the same to the Town Clerk who shall notify the applicant that no license shall be issued.

SECTION 4. The Town Clerk shall pay over all money received for such licenses less \$2.00 for each license issued, to the Town Treasurer not later than the tenth (10th) of the month following issuance of the licenses and shall keep a record of all licenses so issued, the date thereof, the name of licensee to whom given and the amount of money received therefore.

SECTION 5. Any person who shall violate any provision of this ordinance shall be fined not more than fifty (\$50.00) dollars. Should any section, paragraph or part of this ordinance be declared invalid for any reason, the remainder there of shall not be affected there by.

SECTION 6. This Ordinance shall become effective on June 15, 1962. Voted: May 12, 1962.

SPECIAL ACT

SPECIAL ACT NO. 124 PASSED BY THE GENERAL ASSEMBLY OF THE STATE OF CONNECTICUT AT THE FEBRUARY 1965 SPECIAL SESSION

65-04

AN ACT CONCERNING VALIDATION OF THE ASSESSMENT LIST OF THE TOWN OF ANDOVER.

The assessment list of October 1, 1964, of the Town of Andover otherwise valid except that the assessors may have omitted to sign or make oath to an abstract of said assessment list, or to lodge the same in the Town Clerk's Office by January 31, 1965, as required by law, is validated and the same is ratified and made binding on said Town. Approved: June 2, 1965.

ORDINANCE CONCERNING REGIONAL COUNCIL OF ELECTED OFFICIALS

TOWN OF ANDOVER, CONNECTICUT

66-01

SECTION 1. The Town of Andover does hereby join the Regional Council of Elected Officials, as defined by Public Act 511 of the 1965 General Assembly created by ordinances of the towns, cities and boroughs within its planning region as defined by the Connecticut Development Commission.

SECTION 2. The representative to said Regional Council shall be the First Selectman.

SECTION 3. The Regional Council shall have such powers, purposes, responsibilities and duties as stated in Public Act 511 of the 1965 General Assembly.

This Ordinance shall become effective fifteen days after publication. Voted: Special Town Meeting March 25, 1966. Published in Manchester Herald April 8, 1966.

GARDEN APARTMENT HOUSING CODE FOR THE TOWN OF ANDOVER

66-02

An ordinance establishing the minimum standards and requirements of space, use and location of garden apartments for the purpose of insuring their adequacy and safety for human habitation.

SECTION 1.DEFINITIONS.

A. The following definitions shall apply in the interpretation and enforcement of this ordinance.

1. BASEMENT – means that portion of a building located partly under ground level and having less than one half of its clear floor to ceiling height below the average grade of the adjoining ground.
2. CELLAR – means that portion of a building located entirely under ground level or partly under ground level and having one half or more of its clear floor to ceiling height below the average grade of the adjoining ground.
3. GARDEN APARTMENT – means a building or group of buildings not over two stories in height intended to be occupied by three or more families living independently of each other and so designed to give the maximum amount of open space per family.
4. APARTMENT OR DWELLING UNIT – means a group of rooms, or portions of a garden apartment and forming a single unit for habitation by persons which is used or intended to be used for living, sleeping, cooking or eating.
5. HABITABLE ROOM – means a room or enclosed floor space for habitation by persons which is used or intended to be used for living, sleeping, cooking or eating, excluding, however, bathrooms, water closet, compartments, laundries, pantries, foyers, hallways, closets, recreation rooms, workshops, hobby and game rooms, storage rooms and similarly used spaces which are accessory uses to conforming garden apartments.
6. OCCUPANT – means any person over one year of age, living, sleeping, cooking or eating or otherwise occupying or having possession of an apartment or dwelling unit
7. RENT – means to lease or to let or hire out to a person not a member of the owners family unit space of occupancy or use for living, sleeping cooking or eating.

SECTION 2.MINIMUM SPACE, USE AND LOCATION REQUIREMENTS.

1. No person shall rent, lease or let to another for occupancy any garden apartment or portion thereof which does not comply with the following requirements:

(a) No cellar, basement space or portion thereof shall be rented to be used as an apartment, dwelling unit or habitable room.

(b) Every dwelling unit shall contain at least 400 square feet of floor space for the first occupant thereof and at least 125 additional square feet of floor space for each additional occupant, the floor space to be calculated on the basis of the total habitable room area.

SECTION 3.INSPECTIONS.

1. The Building Inspector and/or his authorized agent is hereby authorized to make inspections for the purpose of determining compliance with the provisions of this ordinance and the safety and adequacy of garden apartments for human habitation. For the purpose of making such inspection, the Building Inspector and/or his authorized agent is hereby empowered to inspect and survey at all reasonable times all apartments, dwelling units or portions thereof. The owner and/or occupant of every apartment, dwelling unit or portion thereof, or person in charge, shall give the Building Inspector and/or his authorized agent access to such apartments, dwelling units or portion thereof at all reasonable hours for the purpose of such inspection and survey.

SECTION 4: ENFORCEMENT AND SERVICE OF NOTICE AND ORDERS.

1. The Building Inspector and/or his authorized agent is hereby give the power and authority to enforce the provision of this ordinance.

2. Whenever the Building Inspector and/or his authorized agent determines that there are reasonable grounds to believe that there has been a violation of any provisions of this ordinance or of any rule or regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefore, as hereinafter provided. Such notice shall:

(a) Be in writing;

(b) Include a statement of the reasons why it is being issued;

(c) Allow a reasonable time for the doing of any act it requires;

(d) Be served upon the owner or his agent, or the occupant, as the case may require: Provided, that such notice shall be deemed to be properly served upon such owner or agent, or upon such occupant, if a copy thereof is served upon him personally; or if a copy thereof is posted in a conspicuous place in or about the garden apartment

affected by the notice; or if he is served with such notice by any other method authorized or required by the laws of this State; and

(e) Contain an outline of remedial action, which, if taken, will effect compliance with the provisions of this ordinance and the with rules and regulations adopted pursuant thereto.

3. The Building Inspector and/or his authorized agent is hereby authorized to make inspections for the purpose of determining compliance with the provisions of this ordinance, provided, that such rules and regulations shall not be in conflict with the provisions of this ordinance. The Building Inspector shall file a certified copy of all such rules and regulations which he may adopt with the Town Clerk of Andover and publish same in a newspaper having a general circulation in the Town of Andover before such rules and regulations become effective. Such rules and regulations shall have the same force and effect of the provisions of this ordinance, and the penalty for violation there of shall be the same as the penalty for violation of the provisions of this ordinance as hereinafter provided.

SECTION 5: VIOLATIONS AD PENALTIES

1. Any person who shall violate any provision of this ordinance may, upon conviction, be punished by a fine of not less than ten (\$10) dollars or more than one hundred (\$100) dollars; and each days failure to comply with any such provision shall constitute a separate violation.

SECTION 6. CONFLICT OF ORDINANCES AND EFFECT OF PARTIAL INVALIDITY

1. In any case where a provision of this ordinance is found to be in conflict with a provision of any zoning, building, fire, safety, health ordinance, code of the Town of Andover or State Statute existing on the effective date of this ordinance the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail. In any case where a provision of this ordinance is found to be in conflict with a provision of any other ordinance or code of the Town of Andover existing on the effective date of this ordinance which establishes a lower standard for the promotion and protection of the health and safety of the people, the provisions of this ordinance shall be deemed to prevail, and such other ordinances or codes are hereby declared to be repealed to the extent that they may be found in conflict with this ordinance.

2. If any section, subsection, paragraph, sentence, clause or phrase of this ordinance should be declared invalid for any reason whatsoever such decision shall not affect and

remaining portions of this ordinance, which shall remain in full force and effect, and to this extent of the provisions of this ordinance are hereby declared to be severable.

SECTION 7. EFFECTIVE DATE

1. This ordinance shall be effective upon adoption.
2. This ordinance shall not apply to any garden apartment rented at the time of the adoption of this ordinance, but no alteration thereof and no building permit therefore shall be issued hereafter except to make such garden apartment conform with the provisions of this ordinance.

Adopted by the Town Meeting of the Town of Andover on March 25, 1966. Published in the Manchester Evening Herald April 21, 1966.

RENTAL HOUSING CODE FOR THE TOWN OF ANDOVER

66-03

An ordinance establishing the minimum standards and requirements of space, use and location of rental dwelling units or portions thereof for the purpose of insuring their adequacy and safety for human habitation.

SECTION 1 . DEFINITIONS

A. The following Definitions shall apply in the interpretation and enforcement of this ordinance:

1. BASEMENT – means that portion of a building located partly under ground level and having less than one half of its clear floor to ceiling height below the average grade of the adjoining ground
2. CELLAR – means that portion of a building located entirely under ground level or partly under ground level and having one half or more of its clear floor to ceiling height below the average grade of the adjoining ground.
3. DWELLING – means any building which is designed, used or intended to be used in a whole or in part for living, sleeping, cooking or eating by human occupants.
4. DWELLING UNIT – means any room, group of rooms or portion of a dwelling and forming a single unit for habitation by persons which is used or intended to be used for living, sleeping, cooking or eating.

5. HABITABLE ROOM – means a room or enclosed floor space for habitation by persons which is used or intended to be used for living, sleeping, cooking or eating; excluding, however, bathroom, water closet, compartments, laundries, pantries, foyers, hallways, closets, recreation rooms, workshops, hobby and game rooms, storage rooms and similarly used spaces which are accessory uses to conforming dwellings, dwelling units and habitable rooms.

6. OCCUPANT – means any person over one (1) year of age, living, sleeping, cooking or eating in or otherwise occupying or having possession of a dwelling, dwelling unit or room.

7. RENT – means to lease or to let or hire out a person not a member of the owners family unit space for occupancy or use for living, sleeping, cooking or eating.

SECTION 2. MINIMUM SPACE, USE AND LOCATION REQUIREMENTS

1.No person shall rent, lease or let to another for occupancy any dwelling, dwelling unit or room which does not comply with the following requirements:

(a) No cellar or portion thereof shall be rented to be used as a dwelling, dwelling unit or habitable room unless (1) the floors and walls thereof are watertight and impervious to the leakage or seepage of underground and surface waters and insulated against dampness; (2) the minimum aggregate glass area of windows shall be not less than one tenth (1/10) of the floor area of each room; (3) all windows shall be located above the grade of the adjoining ground; and (4) two (2) means of exit to the exterior shall be provided.

(b) No basement space shall be rented to be used as a dwelling, dwelling unit or habitable room unless (1) the floors and walls thereof are watertight and impervious to the leakage or seepage of underground and surface waters and insulated against dampness; (2) the minimum aggregate glass area of windows shall be not less than one tenth (1/10) of the floor area of each room; (3) all windows shall be located above the grade of the adjoining round; and (4) two (2) means of exit to the exterior shall be provided.

(c) Every dwelling unit shall contain at least one hundred (100) square feet of floor space for the first occupant thereof and at least eight (80) additional square feet of floor space for each additional occupant, the floor space to be calculated on the basis of the total of the total habitable room area. Every room occupied for sleeping purposes by one occupant shall contain at least seventy (70) square feet of floor space and every room occupied for sleeping purposes by more than

one occupant shall contain at least fifty (50) square feet for each occupant thereof.

SECTION 3.INSPECTIONS.

1. The Building Inspector and/or his authorized agent is hereby authorized to make inspections for the purpose of determining compliance with the provisions of this ordinance and the safety and adequacy of dwellings, dwelling units or portions thereof for human habitation. For the purpose of making such inspection, the Building Inspector and/or his authorized agent is hereby empowered to inspect and survey at all reasonable times all dwellings, dwelling units or portion thereof, or person in charge, shall give the Building Inspector and/or his authorized agent access to such dwelling, dwelling unit or portion thereof at all reasonable hours for the purpose at all reasonable hours for the purpose of such inspection and survey.

SECTION 4.ENFORCEMENT AND SERVICE OF NOTICE AND ORDERS.

1. The Building Inspector and/or his authorized agent is hereby given the power and authority to enforce the provisions of this ordinance.

2. Whenever the Building Inspector and/or his authorized agent determines that there are reasonable grounds to believe that there has been a violation of any provision of this ordinance or of any rule or regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefore, as hereinafter provided. Such notice shall:

- (a) Be in writing;
- (b) Include a statement of the reasons why it is being issued;
- (c) Allow a reasonable time for the doing of nay act it requires;
- (d) Be served upon the owner or his agent, or the occupant as the case may require: provided, that such notice shall be deemed to be properly served upon such owner or agent, or upon such occupant, if a copy thereof is served upon him personally; or if a copy thereof is sent by certified mail to his last known address; or if a copy thereof is posted in a conspicuous place in or about the dwelling affected by the notice; or if he is served with such notice by any other method authorized or required by the laws of this State; and
- (e) Contain an outline of remedial action which, if taken, will effect compliance with the provisions of this ordinance and with rules and regulations adopted pursuant thereto.

3. The Building Inspector is hereby authorized to make and to adopt such written rules and regulations as may be necessary for the proper enforcement of the provisions of

this ordinance, provided, that such rules and regulations shall not be in conflict with the provisions of this ordinance. The Building Inspector shall file a certified copy of all such rules and regulations which he may adopt with the Town Clerk of Andover and publish same in a newspaper having a general circulation in the Town of Andover before such rules and regulations become effective. Such rules and regulations shall have the same force and effect as the provisions of this ordinance, and the penalty for violation thereof shall be the same as the penalty for violation of the provisions of this ordinance as hereafter provided.

SECTION 5.VIOLATIONS AND PENALTIES.

1. Any person who shall violate any provisions of this ordinance may, upon conviction, be punished by a fine of not less than ten (\$10) dollars or more than one hundred (\$100) dollars, and each day's failure to comply with any such provision shall constitute a separate violation.

SECTION 6.CONFLICT OF ORDINANCES AND EFFECT OF PARTIAL INVALIDITY.

1. In any case where a provision of this ordinance is found to be in conflict with a provision of any zoning, building, fire, safety, health ordinance code of the Town of Andover or State Statute existing on the effective date of this ordinance, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail. In any case where a provision of this ordinance is found to be in conflict with a provision of any other ordinance or code of the Town of Andover existing on the effective date of this ordinance which establishes a lower standard for the promotion and protection of the health and safety of the people, the provisions of this ordinance shall be deemed to prevail, and such other ordinances or codes are hereby declared to be repealed to the extent that they may be found in conflict with this ordinance.

2. If any section, subsection, paragraph, sentence, clause or phrase of this ordinance should be declared invalid for any reason whatsoever, such decision shall not affect the remaining portions of this ordinance, which shall remain in full force and effect; and to this extent the provisions of this ordinance are hereby declared to be severable.

SECTION 7.EFFECTIVE DATE.

1. This ordinance shall be effective upon adoption.

2. This ordinance shall not apply to any dwelling, dwelling unit or portion thereof, rented at this time of the adoption of this ordinance, but no alteration thereof shall be

allowed and no building permit therefore shall be issued hereafter except to make such dwelling, dwelling unit or portion thereof, conform with the provisions of this ordinance.

Adopted by the Town Meeting of the Town of Andover on March 25, 1966. Published in the Manchester Evening Herald April 21, 1966.

ELIMINATION OF ANNUAL LISTING OF MOTOR VEHICLES AND REAL ESTATE

67-03

The Town of Andover adopts the provisions of Section 12-41 (b) of the Connecticut General Statutes Revisions 1958 concerning the elimination of annual listing of motor vehicles which are registered in the office of the State Motor Vehicle Commissioner. The Town of Andover adopt the provisions of Section 12-41 of the Connecticut General Statutes Revision 1958 concerning the elimination of the annual listing of real estate and to approve the request of the Board of Assessors to the State Tax Commissioner to compile the abstract of real estate from data contained on the owners cards.

Voted: Special Town Meeting September 8, 1967.

ORDINANCE PROVIDING A PERMANENT ALTERNATE REPRESENTATIVE TO THE REGIONAL COUNCIL OF ELECTED OFFICIALS

68-01

The First Selectman shall appoint a permanent alternate representative to the Regional Council of Elected Officials.

Voted at Annual Budget Meeting May 4, 1968. Effective June 1, 1968.

ORDINANCE AUTHORIZING AND EMPOWERING THE CHAIRMAN OF THE BOARD OF FINANCE, THE FIRST SELECTMAN AND THE CHAIRMAN OF THE PLANNING AND ZONING COMMISSION TO ESTABLISH FEES

70-01

The Chairman of the Board of Finance, the First Selectman and the Chairman of the Planning and Zoning Commission are hereby authorized and empowered to establish a schedule of fees for permits issued under the provisions of the State of Connecticut Building Code, adopted by the Town of Andover, and the Sewage Disposal Ordinance, adopted by the Town of Andover, and to amend the schedule from time to time as deemed necessary. This ordinance shall become effective fifteen days after publication.

Voted at Annual Town Meeting October 5, 1970

.Published in the Manchester Herald October 12, 1970.

ORDINANCE REGARDING ACCEPTANCE OF GIFT OF LAND DESIGNATION OF PARK OF SIGNIFICANCE

71-01

The Town of Andover hereby accepts the gifts of land offered to the Town by Joseph B. Vinick, Raymond B. Porris and Oscar Porris, said land being approximately 4.5 acres located on Long Hill Road, Andover, Connecticut, lying northeasterly of and adjacent to the land of the Town of Andover and is bounded:

SOUTHEASTERLY: by Long Hill Road

NORTHEASTERLY: by land now or formerly of Joseph B. Vinick et al,

NORTHWESTERLY: by land now or formerly of Joseph B. Vinick, et al

SOUTHWESTERLY: by land of the Town of Andover.

The Town hereby designates said land as a park of significance to the Town of Andover. This ordinance shall become effective fifteen days after publication.

Voted at Annual Budget Meeting May 1, 1971.

Published in Manchester Evening Herald May 11, 1971.

ORDINANCE PROVIDING FOR A THIRTY DAY PROBATIONARY PERIOD FOR NEW EMPLOYEES BEFORE MAKING PAYROLL DEDUCTIONS FOR THE MUNICIPAL EMPLOYEE RETIREMENT FUND

72-05

There shall be a probationary period of thirty (30) days for new employees of the Town of Andover before payroll deductions for the Municipal Employee's Retirement Fund shall be made. This ordinance shall become effective fifteen (15) days after publication.

Voted at Annual Town Meeting October 11, 1972.

Published Manchester Evening Herald October 20, 1972.

ORDINANCE CREATING A WETLANDS COMMISSION AND AUTHORIZING IT TO PROMULGATE REGULATIONS PROTECTING THE WETLANDS AND WATER COURSES OF THE TOWN OF ANDOVER

74-01

BE IT ORDAINED BY THE TOWN MEETING of the Town of Andover: That the following ordinance is adopted pursuant to the provisions of An Act Concerning Inland Wetland and Water Courses, Section 7-131 (a) of the Connecticut General Statutes.

SECTION 1. The inland wetlands and water courses of the Town of Andover are an indispensable and irreplaceable but fragile natural resource with which the citizens of the town have been endowed. The wetlands are an interrelated web of nature essential to an adequate supply of surface and underground water; to hydrological purification of ground water and to the existence of many forms of animal, aquatic and plant life.

Many inland wetlands and water courses have been destroyed or are in danger of destruction because of unregulated use by reason of the deposition, filling or removal of material, the diversion or obstruction of water flow, the erection of structures and other uses, all of which have despoiled, polluted and eliminated wetlands and water courses. Such unregulated activity has had, and will continue to have, a significant adverse impact of the environment and ecology of the Town of Andover and has and will continue to imperil the quality of the environment thus adversely affecting the ecological, scenic, historic and recreational values and benefits of the Town of Andover for its citizens now and forever more.

The preservation and protection of the wetlands and water courses from random, unnecessary, undesirable and unregulated uses, disturbance or destruction is in the public interest and is

essential to the health, welfare and safety of the citizens of the town. It is therefore the purpose of this ordinance to protect the citizens of the Town of Andover by making provisions for the protection, preservation and maintenance and use of the inland wetlands and water courses by minimizing their disturbance and pollution; maintaining and improving water quality in accordance with the highest standards set by federal, state or local authority preventing damage from erosion, turbidity or siltation; preventing loss of fish and other beneficial aquatic organisms, wildlife and vegetation and the destruction of the natural habitats thereof; deterring and inhibiting the danger of flood and pollution; protecting the quality of wetlands and water courses for their conservation, economic, aesthetic, recreational and other public and private uses and values; and protecting Andover's potable fresh water supplies from the

dangers of drought, overdraft, pollution, misuse and mismanagement by providing an orderly process to balance the need for economic growth of Andover and the use of its land with the need to protect its environment and ecology in order to forever guarantee to the people of Andover the safety of such natural resources for their benefit and enjoyment and for the benefit and enjoyment of generations yet unborn.

SECTION 2. A. The Wetlands Commission shall consist of five regular members and three alternates. One of the regular five members shall be appointed by the Planning and Zoning Commission from among its own current membership. All other members and alternates shall be appointed by the Board of Selectmen. Regular members shall serve for two year terms. Alternates shall serve for three year terms. Subject to subsection C of this ordinance, all members and alternates serving at the time of enactment of this ordinance may continue to serve until their terms are expired.

B. Vacancies shall be filled by the Board of Selectmen.

C. In the event that an agency member misses four consecutive meetings, the Board of Selectmen may remove that member and fill the vacancy created by the manner provided in paragraph B of this section.

SECTION 3. A. The Wetlands Commission is authorized to promulgate such regulations in conformity with regulations promulgated by the Commissioner of Environmental Protection, as are necessary to protect the wetlands and water courses, and define boundaries of inland wetland areas as defined by Public Act No. 155, as amended, within the territorial limits of the Town of Andover. No such regulations of a Wetlands Commission including boundaries of inland wetland areas shall become effective or be established until after a public hearing in relation thereto held by the Wetlands Commission, at which parties in interest and citizens shall have an opportunity to be heard. Notice of the time and place of such hearing shall be published in the form of a legal advertisement, appearing in a newspaper having a substantial circulation in the municipality at least twice at intervals of not less than two days, the first not

more than 25 days nor less than 15 days, and the last not less than two days before such hearing, and a copy of such proposed regulation or boundary shall be filed in the office of the Town Clerk for public inspection at least ten days before such hearing, and may be published in full in such paper.

B. Upon adoptions by the Wetlands Commission, such regulations shall be forwarded to the Commissioner of Environmental Protection for approval. The regulations thus approved, together with any maps delineating wetlands and water courses made a part thereof, be filed in the office of the Town Clerk and shall become effective upon such filing. Notice of such approved regulations shall be published in a newspaper having a substantial circulation in the Town of Andover no less than ten days after said filing.

C. Amendments to such regulations and inland wetland boundaries shall be promulgated in the manner provided in paragraphs A and B of this section. The Wetlands Commission shall only consider proposed regulations or inland wetland boundaries which have been submitted in writing and in a form prescribed by it. Said proposals shall be considered by the Wetlands Commission within 60 days of the receipt of the petition containing said proposal. The petitioner may consent to extension of the periods provided for in hearing and for adoption or denial or may withdraw such petition. The Wetlands Commission may require a filing fee to be deposited with the agency to defray the cost of publication of the notice required for hearing. The Wetlands Commission shall not be required to hear any petition or petitions relating to the same regulation or map changes or substantially the same changes, more than once in a period of twelve months.

SECTION 4. In exercising the authority granted herein, the Wetlands Commission shall:

- A. Develop comprehensive programs in furtherance of the purposes of this ordinance;
- B. Advise, consult and cooperate with agencies of the municipality, region, state and federal government, other states and with persons and municipalities in the furtherance of the purposes of this ordinance; to this end, all applications of building permits, subdivision plans or other permits which involve or may involved regulated activities in an inland wetland or water course made to any other Andover Board or Commission shall be subject to review of the Wetlands Commission.
- C. Encourage, participate in or conduct studies, investigations, research and demonstrations, and collect and disseminate information relating to the purpose of this ordinance;
- D. Retain and employ consultants and assistants on a contract or other basis for the purpose of rendering legal, financial, technical or other assistance and advice in furtherance of any of its purposes, specifically including, but not limited to, soil scientists of the United States Soil Conservation Service for the purpose of making

onsite interpretations, evaluations and findings as to soil types and/or utilize the services of such other town officials and employees as it may deem appropriate;

E. Promulgate such regulations as are necessary to protect the inland wetland and water courses or any of them individually or collectively;

F. Inventory or index the inland wetlands and water courses in such form, including pictorial representations, and list of plant species, as the Wetland Commission deems best suited to effectuate the purposes of this ordinance;

G. Exercise all incidental powers necessary to enforce regulations and to carry out the purposes of this ordinance, including the designation of a compliance officer and administrator.

SECTION 5. Any person aggrieved by a final decision of the town acting through the Wetlands Commission shall have the right of appeal to the Court of Common Pleas of Tolland County as provided by Public Act 155 of 1972 and as amended.

SECTION 6. Any person violating this ordinance or regulations promulgated hereunder shall be subject to the remedies and penalties provided by Public Act 155 and as amended.

SECTION 7. The invalidity of any word, clause, sentence, sectional part or provision of this ordinance shall not affect the validity of any other part which can be given effect without such invalid part or parts.

SECTION 8. The ordinance shall become effective upon passage.

Voted at Special Town Meeting at Andover, Connecticut on January 28, 1974. Published Manchester Evening Herald February 9, 1974. Revision to Section 2A passed at Town Meeting January 30, 2007. Published in Rivereast February 9, 2007. Revised Ordinance becomes effective 21 days after publication.

ORDINANCE CONTROLLING TOWN OWNED PROPERTY

76-01

All town-owned personal property and equipment, except items under the control of the Fire Commissioners, the Library Directors and the Board of Education shall be under the authority and control of the Board of Selectmen.

This ordinance to be effective 15 days after publication.

Voted at Special Town Meeting February 9, 1976,

Effective March 2, 1976.

Published Manchester Evening Herald February 16, 1976.

AN ORDINANCE PROHIBITING THE THROWING OR PLACING OF WASTE MATERIALS ON ROADS OF THE TOWN OF ANDOVER, CONNECTICUT, AND PRESCIBING PENALTIES FOR THE VIOLATION OF ITS PROVISIONS.

76-02

SECTION 1. DEFINITIONS

A. GARBAGE – is the wastes resulting from the handling, preparation, cooking and consumption of food.

B. REFUSE – is all solid wastes including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, discarded solid materials, and industrial wastes, paper, cardboard, tin cans, yard clippings, wood, glass, bedding, crockery and similar materials.

C. LITTER – is garbage and refuse as defined herein and all other waste materials.

D. PERSON – is any natural person, firm, partnership, association, corporation, company and organization of any kind.

SECTION 2. No person shall throw or place any garbage, refuse, litter or other waste materials on any road, street or highway or within the right of way of any road, street or highway of the Town of Andover, Connecticut.

SECTION 3. Any person convicted of violation of any of the provisions of this ordinance shall be fined \$10.00.

This ordinance shall become effective 15 days after publication.

Published Manchester Evening Herald May 18, 1976.

Effective date June 2, 1976.

ORDINANCE CONCERNING TAX ABATEMENT FOR LOW AND MODERATE INCOME HOUSING FOR THE HOUSING FOR THE ELDERLY OWNED BY THE NEW SAMARITAN HOUSING CORPORATION

81-01

SECTION 1. DEFINITIONS. For the purpose of this ordinance:

(A) "Low and moderate income housing" means housing the construction or rehabilitation of which is aided or assisted in any way by any federal or state statute, which housing is subject to regulation or supervision of rents, charges or sales prices and methods of operation by a governmental agency under a regulatory agreement or other instrument which restricts occupancy of such housing to persons or families whose incomes do not exceed prescribed limits, and shall be deemed to include the land on which such housing is situated.

SECTION 2.

An abatement of real estate taxes in excess of \$10,000.00 per year on real property located on Riverside Drive owned by the New Samaritan Housing Corporation is hereby granted for a period of five years beginning with the taxes due on the list of October 1, 1980, payable during the fiscal year July 1, 1981 – June 30, 1982.

SECTION 3.

All moneys equal to the amount of said tax abatement shall be used by the New Samaritan Housing Corporation for one or more of the following purposes:

1. To reduce rents below the levels which would be achieved in the absence of such abatement and to improve the quality and design of such housing;
2. To effect occupancy of such housing by persons and families of varying income levels within limits determined by the Commissioner of Housing by regulation; or
3. To provide necessary related facilities of services in such housing.

SECTION 4.

The tax abatement shall automatically terminate at any time when such housing is not solely for low or moderate income persons or families.

SECTION 5.

In the event that said tax abatement is terminated from the date of the termination the New Samaritan Housing Corporation shall pay to the Town of Andover the full taxes what would be due to said town without the effect of any abatement.

SECTION 6.

The Board of Selectmen is authorized to enter into a contract with the New Samaritan Housing Corporation which contract shall provide the terms of the abatement that moneys equal to the amount of such abatement shall be used for any one or more of the purposes above state and that such abatement shall terminate at any time when such housing is not solely for low or moderate income persons or families.

This ordinance shall become effective fifteen days after publication.

Passed at Annual Town Meeting May 2, 1981.

Published in Manchester Evening Herald May 13, 1981.

RIVERSIDE DRIVE TAX ABATEMENT RESOLUTION

BE IT RESOLVED THAT

The First Selectman be authorized to implement the modification and renewal of the agreement with Eastern Connecticut Housing Organization, Inc., formerly known as the New Samaritan Housing Corporation, owners of Hop River Homes, as said agreement relates to Section 2 of Ordinance Number 81-01, as amended, an "Ordinance Concerning Tax Abatement for Low or Moderate Income Housing for the Elderly owned by the New Samaritan Housing Corporation," to permit an abatement of real estate taxes in excess of \$12,000.00 per year on real property located on Riverside Drive, owned by said Eastern Connecticut Housing Organization, Inc., for a period of five years beginning with the taxes due on the Grand List of October 1, 2005, payable during the Fiscal Year July 1, 2006 to June 30, 2007.

Passed by Town Meeting on January 30, 2007

Published in Rivereast February 9, 2007.

Becomes effective 21 days after publication.

TAX ABATEMENT ORDINANCE REWORD

The tax abatement to New Samaritan, Hop River Homes shall be granted so that the total tax bill is \$10,000.00 per annum.

Passed at Board of Selectmen Meeting August 3, 2005.

TAX ABATEMENT NEW SAMARITAN HOUSING

Mrs. Gasper moved that the Town vote to amend Section 2 of the Ordinance concerning Tax Abatement for Low and Moderate Income Housing for the housing for the Elderly owned by the New Samaritan Housing Corporation, to extend the partial tax abatement set forth therein to the Grand Lists of October 1, 1980 through October 1, 1990. Second.

Mrs. Hutchinson moved an amendment to the motion that the date October 1, 1990 be changed to 1989 to conform with the action to be taken under Item A. Seconded. Passed by voice vote.

Mrs. Gasper moved that the Town renew the agreement with the New Samaritan Housing Corporation as it relates to the ordinance passed on May 2, 1981, at the Annual Town Meeting, for a period of five years beginning with the taxes due on the list of October 1, 1985, payable during Fiscal Year July 1, 1986 to June 30, 1987 and authorize the First Selectman to execute such renewal on behalf of the Town. Mr. Richards seconded. Passed by voice vote.

Town Meeting vote October 2, 1985.

ANNUAL TOWN MEETING

TOWN OF ANDOVER, CONNECTICUT, OCTOBER 23, 1989 AT 8:00PM

Mrs. Haverl moved that the Town renew an agreement with the New Samaritan Housing Corporation as it relates to the Ordinance passed on May 2, 1981 at the Annual Budget Meeting, for a period of five years beginning with the taxes due on the list of October 1, 1989, payable during the Fiscal Year July 1, 1990 – June 30, 1991. Seconded by Nellie Boisvert. Passed by voice vert.

Mrs. Haverl moved that the Town act upon an amendment of Section 2 of the Ordinance Concerning Tax Abatement for Low and Moderate Income Housing for the Housing for the Elderly owned by the New Samaritan Housing Corporation to extend the partial tax abatement

set forth therein to the Grand Lists of October 1, 1989 through October 1, 1993, and to authorize the First Selectman to Execute such renewal on behalf of the Town. Second by Mrs. Kowalski. Passed by voice vote.

J. Russell Thompson moved that the Town grant tax exempt status for property owned by the First Congregational Church of Andover known as 19. Map 34 Block 25, consisting of 3.5 acres located on Long Hill. Second.

Passed by voice vote.

ORDINANCE CONCERNING PROPERTY TAX EXEMPTION FOR SOLAR ENERGY ELECTRICITY GENERATING SYSTEMS, SOLAR ENERGYGY, HEATING OR COOLING SYSTEMS AND PASSIVE OR HYBRID SOLAR ENERGY HEATING OR COOLING SYSTEMS

80-01

The Town of Andover hereby authorizes the property tax exemption for solar energy electricity generating systems, as provided in Section 12-81 (57) (a) (b) (c) of the Connecticut General Statutes, for solar energy heating or cooling systems as provided for in Section 12-81 (56) (a) (b) (c) of the Connecticut General Statutes, and for passive or hybrids solar energy heating or cooling systems as provided for in Section 12-81 (61) (a) (b) (c) of the Connecticut General Statutes.

This ordinance shall take effect fifteen days after publication.
Published in Manchester Evening Herald September 2, 1980.

TOWN OF ANDOVER, CONNECTICUT FLOOD PLAIN MANAGEMENT ORDINANCE.

82-01

1. FLOOD PLAIN DISTRICT

There is hereby established within the Town of Andover a Flood Plain District within which certain activities hereinafter set forth are regulated.

The Flood Plain District includes all special flood hazard areas designated as Zone A, A1-30 on the Andover Flood Insurance Rates Maps (FIRM), and the Flood Boundary and Floodway Maps,

on file with the Andover Town Clerk. These maps as well as the accompanying Andover Flood Insurance Study are incorporated herein be reference.

2. DEVELOPMENT REGULATIONS: The following regulations apply within Zone A, A1-30

A. RESIDENTIAL CONSTRUCTION: New construction and substantial improvement of any residential structures shall have the lowest floor, including basement, elevated to or above the base flood elevation.

B. NON-RESIDENTIAL CONSTRUCTION: New construction and substantial improvement of non-residential structures shall be constructed in accordance with 2-A, or together with attendant utility and sanitary facilities shall:

- 1) Be flood proofed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water;
- 2) Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and
- 3) Be certified by a registered professional engineer or architect that the standards of this subsection are satisfied. Such certification shall be provided to the Building Official.

C. WITHIN THE FLOODWAY, designated on the Flood Boundary and Floodway Map, all encroachments, including fill, new construction, substantial improvements to existing structures and other development are prohibited unless certification by a registered professional engineer is provided by the applicant demonstrating that such encroachment shall not result in any increase in flood levels during the occurrence or the 100-year flood.

D. WITHIN ZONE A, the applicant shall obtain any existing base flood elevation data and it shall be reviewed by the Building Official for its reasonable utilization toward meeting the elevation or flood proofing requirements of this district.

3. GENERAL STANDARDS: Within Zone A, A1-30 the following standards must be met prior to issuing permits for any proposed construction/development.

A. All new construction and substantial improvements shall be anchored to prevent flotation, collapse of lateral movement of the structure.

B. CONSTRUCTION MATERIALS & METHODS: (a) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage, (b) All new construction and substantial improvements shall be constructed using methods and practices that minimize flood damage.

C. UTILITIES: (1) All new and replacement water supply systems shall be designated to minimize or eliminate infiltration of floodwaters into the system. (2) New and

replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of flood waters into the systems and discharge from the systems into flood waters and (3) On-site waste disposal systems shall be located to void impairment to them or contamination from them during flooding.

D. ALTERATION OF WATERCOURSE: (1) Adjacent communities and the Department of Water Resources Unit shall be notified prior to any alteration or relocation of a Watercourse and evidence of such notification shall be submitted to the Federal Emergency Management Agency and (2) Maintenance shall be provided within the altered or relocated portion of said watercourse so that the flood carrying capacity is not diminished.

4. ESTABLISHMENT OF DEVELOPMENT PERMIT:

A. A development permit shall be obtained from the Building Official before construction or development begins within Zone A, A1-30.

B. Information to be obtained and maintained:

(1) The Building Official shall obtain and record the actual elevation (in relation to mean sea level) of the lowest habitable floor (including basement) of all new or substantially improved structures, which information shall be supplied and certified by a certified professional engineer or registered land surveyor and;

(2) For all new or substantially improved flood proofed structures:

a. verify and record the actual elevation (in relation to mean sea level), which information shall be supplied and certified by a certified professional engineer or registered land surveyor, and

b. Maintain the flood proofing certifications required in Section 11-8.

C. The Building Official shall maintain for public inspection all records pertaining to the provisions of this ordinance.

D. The Building Official shall review all applications for permits to assure that sites are reasonably free from flooding.

5. WARNING AND DISCLAIMER OF LIABILITY

The degree of flood protection required is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Compliance with all provisions of these regulations, however, is not intended to insure against actual flood damage to persons or property. Compliance with the provisions of these regulations is not to be considered an undertaking by the Town of Andover to indemnify or otherwise hold harmless any person from damage to person or property resulting from floods. Larger floods than anticipated by these

regulations can and will occur on occasion. Flood heights may be increased by manmade or natural causes. This regulation does not imply that land outside the limits of the specified recurrence-interval flood, or uses permitted within such areas, will be free from flooding or flood damage. These regulations shall not create liability on the part of the Town of Andover or any subdivision thereof, or any official or employee thereof or member of any town body or commission, or the Federal Insurance Administration for any flood damage which may result from compliance with these regulations or any administrative decision made there under.

6. APPEAL

Any party aggrieved by the implementation of this ordinance shall have the right to appeal directly to the Superior Court, Judicial District of Tolland.

7. EFFECTIVE DATE:

This Ordinance shall be effective fifteen days after publication.

Voted at Annual Town Meeting, October 26, 1981.

Published in Manchester Evening Herald, January 16, 1982.

AN ORDINANCE PROVIDING FOR THE ASSIGNMENT AND AFFIXING OF VISIBLE STREET NUMBERS

88-01

Be it ordained by the Town Meeting of the Town of Andover.

PURPOSE

The purpose of this ordinance is to promote public safety and convenience by requiring visible street numbering in order that addresses may be identified from town roads to ease and speed essential emergency services such as firefighting, police and emergency medical care.

ASSIGNMENT OF STREET NUMBERS

Pursuant to Section 7-148 of the General Statutes of Connecticut, the Town shall assign street numbers to all property and structures fronting on any street or highway within the Town and may change numbers if necessary to have a more orderly numbering system. When new streets

are laid out, the Town shall promptly assign numbers to each property or structure on said street. The Town may assign numbers to private roads which have not been accepted by the Town or which pass through private property. Such assignment of numbers shall not be construed as acceptance of such streets or highways or any portion thereof by the Town. The Town shall be required to notify persons of the number assigned to any property or structure.

Each owner, agent or occupant shall affix to some portion of this property the street number or numbers assigned by the Town. All numbers shall be affixed so as to be visible from a town numbered street or highway. Numbers shall be affixed within 60 days of receipt of notice from the Town.

The Andover Planning and Zoning Commission shall have the authority to name streets with attention being given to avoiding street names which are similar to or may otherwise be confused with existing street names.

EFFECTIVE DATE

This ordinance shall become effective fifteen (15) days after publication thereof in a newspaper having circulation in Town.

INITIAL NUMBERING

The numbering system as of the date of this ordinance is as shown on a set of maps on file in the office of the Town Clerk entitled "Town of Andover – Street Numbering System, 1988" is hereby adopted as specified in Section 7-148 of the General Statutes as the Street Numbering System of the Town of Andover.

WORTHY OF NOTE

Certain streets and roads have been numbered which are not Town roads. This has been done for consistency and convenience and cannot be interpreted as acceptance of the street by the Town.

Passed October 24, 1988.

Published December 12, 1988, Manchester Herald.

ORDINANCE CONCERNING THE HOURS OF TOWN OFFICERS AND EMPLOYEES

89-02

Be it ordained by the Town of Andover:

That the Board of Selectmen is hereby delegated and authorized to fix the hours of employment for each official and employee of the Town of Andover and the hours they are to be on duty at the Town Office Building.

Passed by Town Meeting vote February 23, 1989.

Published Manchester Herald March 2, 1989.

THE FOLLOWING ORDINANCE THAT WAS ADOPTED BY THE ANNUAL TOWN MEETING, ON MAY 10, 1995, REPEALED ORDINANCE 89-03 AND REPLACED IT WITH THE FOLLOWING:

That the salaries or other compensation of all appointed officers and hired employees, shall be fixed by the Board of Selectmen after consultation with the appointing authority.

The effective date is July 1, 1995.

Revision passed by Town Meeting vote May 10, 1995.

Published Willimantic Chronicle June 12, 1995.

Passed by Town Meeting vote February 23, 1989.

Published Manchester Herald March 2, 1989.

ORDINANCE CONCERNING THE SALARY OF ELECTED OFFICIALS

89-04

Be it ordained by the Town of Andover:

That no change shall be made in the salaries of any elected official, including the following, except at a duly called Town Meeting. Such changed salaries shall not be more than recommended and approved by the Board of Finance.

First Selectman, two (2) other selectmen, two (2) Registrars of Voters, Tax Collector, Town Clerk, Treasurer, Chairman Board of Tax Review, two (2) members of Tax Review.

Passed by Town Meeting vote February 23, 1989.

Published Manchester Herald March 2, 1989.

ORDINANCE TO REGULATE ANDOVER DISPOSAL AREA

90-01

The present "Ordinance to Regulate Andover Disposal Area" is repealed and the following is substituted therefore:

SECTION 1. PURPOSE:

To regulate the use and maintenance of the Andover Landfill Area ("Landfill") in order to safeguard the health and safety of the people of the Town of Andover ("Town") and to comply with the State Statutes pertaining to disposing and recycling solid waste.

SECTION 2. DEFINITIONS:

LANDFILL: That property located on Shoddy Mill Road in the Town, commonly referred to in the past as "The Dump."

LANDFILL ATTENDANT: That person appointed by the Board of Selectmen to supervise the use and maintenance of the Landfill and to limit the use of the Landfill to those persons authorized under this ordinance.

HOUSEHOLD WASTE: Bio materials, animal and vegetable materials originating within households in the Town.

COMMERCIAL WASTE: Waste, other than Household Waste, generated within the Town either by businesses located within the Town or by out-of-town contractors or subcontractors performing work within the Town.

RECYCABLE MATERIALS: Solid waste which through the process of recycling may be separated, extracted, refined or utilized to produce energy or materials which may be reused in manufacturing, agriculture or in other processes, to include, but not limited to, cardboard, dry cell batteries, glass food containers, high density polyethylene plastic containers, meat food containers, newspapers, office paper, polyethylene terephthalate ("PET") plastic food containers, scrap metal, scrap tires, storage batteries, waste oil and yard waste and leaves.

HAZARDOUS WASTE: Any waste material, except radioactive material referred to in Section 22a-151 of the General Statutes, which may pose a present or potential hazard to human health or the environment when improperly disposed of, treated, stored, transported or otherwise managed, including (a) hazardous waste identified in accordance with Section 3001 of the Federal Resource Conservation and Recovery Act of 1976, (b) Hazardous material identified by regulation by the Department of Environmental Protection and (c) Polychlorinated biphenyl's in concentrations greater than fifty parts per million.

REFUSE COLLECTORS: Those persons allowed by permit issued by the Board of Selectmen to collect solid waste on a commercial basis within the Town and to deposit refuse in the Landfill generated in the Town from residences and businesses.

RESIDENT: Any person who resides within or who owns or rents property within the geographical limits of the Town.

BUISNESS: Any business entity or institution located within the geographical limits of the Town or any out of town contractor or subcontractor performing work within the Town.

SECTION 3. HOURS OF OPERATION

The landfill shall be open on such days and hours as determined by the Board of Selectmen.

SECTION 4. PERSONS AUTHORIZED TO USE THE LANDFILL AREA

Only residents, businesses and refuse collectors as defined in this ordinance may dispose of materials in the Landfill. No one shall be allowed to use the landfill without showing authorization (a ticket, pass or sticker) obtained from the Board of Selectmen.

SECTION 5. PERMITS FOR REFUSE COLLECTORS

The Board of Selectmen shall issue and revoke permits authorizing Refuse Collectors to dispose at the Landfill refuse collected from Residents and Businesses as defined in this ordinance. Such permits shall be revocable for cause at the discretion of the Board of Selectmen. No Refuse Collector shall collect within the Town or dispose of refuse in the Landfill without first having obtained a permit from the Board of Selectmen. The Board of Selectmen may issue identification stickers to those persons permitted to use the disposal area.

SECTION 6. CONTRACTORS AND SUBCONTRACTORS

Those persons whose business may be located within or outside of the Town who generate waste in the course of work being performed within the Town.

SECTION 7. PERMITS FOR BUISSNESS AND FOR CONTRACTORS AND SUBCONTRACTORS

The Board of Selectmen shall issue and revoke permits authorizing businesses, contractors and subcontractors to dispose of solid waste originating within the Town.

SECTION 8. PERMITS FOR RESIDENTS

Each Resident of the Town as defined in this ordinance shall be entitled to deposit waste in the Landfill in accordance with this ordinance and in accordance with such regulations relating to recycling as maybe adopted.

SECTION 9. PERMIT FEES

RESIDENT FEES: There will be no fee charged to Residents.

BUISSNESS, CONTRACTOR AND SUBCONTRACTOR FEES: The amount of the fee to be collected before a permit is used to a business, contractor or subcontractor as defined in this Ordinance shall be determined by the Board of Selectmen.

REFUSE COLLECTOR FEES: The amount of the fee to be collected before a permit is issued to a Refuse Collector as defined in this Ordinance shall be determined by the Board of Selectmen.

SECTION 10. STICKERS

RESIDENTIAL : Stickers shall be issued to residents for each registered motor vehicle. Stickers are to be placed on the windshield of each registered motor vehicle on the driver's side near the emissions sticker.

BUISSNESS, CONTRACTOR AND SUBCONTRACTORS: Stickers, upon payment of the appropriate permit fee, shall be issued to businesses, contractors and subcontractors for only those vehicles

that will be utilized in transporting solid waste to the Landfill. The sticker shall be placed in clear view on the vent window on the driver's side of the vehicle.

REFUSE COLLECTORS: Stickers, upon payment of the appropriate fee, shall be issued to refuse collectors for only those vehicles which will be collecting solid waste in the Town and transporting solid waste to the Landfill. The sticker shall be placed in clear view on the vent window on the driver's side of each vehicle.

All stickers will expire on June 30 of each year and new stickers will be issued upon proof of registration of the vehicle and upon payment of the appropriate permit fee. Stickers issued before or after July 1, 1990 will expire on June 30, 1991.

SECTION 11. DUTIES OF THE LANDFILL ATTENDANT:

THE LANDFILL ATTENDANT SHALL:

- (a) Open and close the Landfill at the designated times.
- (b) Keep unauthorized persons from trespassing on or depositing solid waste in the Landfill.
- (c) Designate the place where and the manner in which recyclable materials shall be deposited at the Landfill.
- (d) Burn combustible materials in a manner recommended by the Town Fire Marshall.
- (e) Supervise the maintenance and use of the Landfill so as to maintain it in a sanitary and orderly condition in accordance with the provisions of this ordinance, other rules and regulations which may be adopted by the Board of Selectmen or by other proper authority.

SECTION 12. MAINTENANCE OF LANDFILL:

The Town, through the Board of Selectmen, shall maintain in a safe condition the approaches and driveways regularly used by persons depositing solid waste at the Landfill, shall plow and sand said approaches and driveways as may be required, shall erect gates, fences and other proper barriers at the entrance and exit of the Landfill and shall post ordinances, rules and regulations governing the use of the Landfill in a conspicuous place at the Landfill. In addition, the Town of Andover, through the Board of Selectmen or its designated agent, shall institute and continue a program for the control of pests and vermin at the Landfill in accordance with generally accepted vermin control practices. It shall designate the area where solid waste shall from time to time be deposited; shall cover all wastes deposited in the Landfill as required and shall do any and all things necessary to maintain the Landfill in as orderly, sanitary and suitable condition as practicable.

SECTION 13. RECYCLING PROGRAM:

The recycling program shall be put into effect in steps over the next year until the program mandated by the State of Connecticut shall be in full operation as of January 1, 1991. Initially there will be containers and designated deposit areas for newspapers, cans, glass, plastic milk containers, P.E.T. soda containers, tires, waste oil and batteries.

For the purposes of the recycling program, recyclable materials shall be broken down and defined as follows:

- (a) CARDBOARD means corrugated boxes and similar corrugated and Kraft paper materials which have a minimum of contamination by food or other material.
- (b) DRY-CELL BATTERY means a device used for generating electric current through a chemical reaction, including, but not limited to, nickel-cadmium batteries, carbon batteries and alkaline batteries.
- (c) GLASS FOOD CONTAINER means a high-density polyethylene bottle or jar of any size or shape used to package food and beverage products suitable for human or animal consumption.
- (d) HDPE PLASTIC CONTAINER means a high-density polyethylene bottle or jar of any size or shape used to package food, household laundry products or crank case oil.
- (e) METAL FOOD CONTAINER means an aluminum, bimetal, steel, tin-plated steel or other metallic can, plate or tray of any size or shape used to package food and beverage products suitable for human consumption.
- (f) OFFICE PAPER means used or discarded high-grade white paper and manila paper including, but not limited to, paper utilized for file folders, tab cards, writing, typing, printing, computer printing and photo copying, which is suitable for recycling and which has a minimum of contamination. For the purposes of this Ordinance, office paper generated by households is excluded.
- (g) P.E.T. PLASTIC FOOD CONTAINER means a polyethylene terephthalate container of any size or shape used to package beverages.
- (h) SCRAP METAL means used or discarded items which consist predominately of ferrous metals, aluminum, brass, copper, lead, chromium, tin nickel or alloys thereof, including but not limited to, white goods and metal food containers.

(i) SCRAP TIRES means discarded rubber or synthetic rubber tires used by or manufactured for vehicles including, but not limited to; automobiles, trucks, buses and trailers.

(j) STORAGE BATTERY means lead acid batteries or other batteries used in motor vehicles such as automobiles, airplanes, boats, recreational vehicles, tractors and like applications.

(k) WASTE OIL means crankcase oil that has been utilized in internal combustion engines.

(l) YARD WASTE AND LEAVES means brush and boughs and foliage of trees. For the purpose of this Ordinance, lawn clippings are excluded.

The recycling program shall become mandatory upon a date established by the Board of Selectmen. From time to time the Board of Selectmen shall issue regulations governing the handling and deposit of recyclable materials.

SECTION 14. PROHIBITED USES:

The following uses and items are prohibited at the Landfill:

(a) Hunting.

(b) Disposal of dead animals, pesticides, explosives, high flammable chemicals, combustibles, reactive toxic substances, other inherently dangerous materials and all hazardous materials.

(c) Any disposal of solid waste in violation of this ordinance or any rules and regulations adopted by the Board of Selectmen or instructions of the Landfill Manager.

(d) Sewer effluence or unsanitary substances.

(e) Tree stumps and logs in excess of six inches in diameter.

(f) Motor vehicles and all parts thereof.

(g) Any solid waste or refuse not generated within the Town.

SECTION 15. PENALTIES:

Any person, firm or corporation in violation of any provision of this Ordinance including rules and regulations established there under, shall be fined not more than one hundred dollars (\$100) for every such violation. Each separate violation shall constitute a separate violation

subject to this penalty. Any violation shall constitute good cause for the revocation of the permit of a Refuse Collector.

Passed by Town Meeting vote February 22, 1990.

Published Manchester Herald March 14, 1990.

Revision of Section 5 passed at Annual Town Meeting October 4, 1965.

Published in the Manchester Herald.

AN ORDINANCE REGULATING THE OPERATION AND/OR PRESENCE OF MOTORIZED VEHICLES ON TOWN PROPERTY.

91-01

BE IT ORDAINED BY THE TOWN MEETING:

SECTION 1. DEFINITIONS

The following definitions shall apply in the interpretation and enforcement of the Ordinance:

A. **MOTORIZED VEHICLE** shall mean any vehicle (except Town owned vehicles) propelled or drawn by any power other than muscular power and shall include, but is not limited to, automobiles, trucks, buses, motorcycles, mini-bikes, go-carts, snowmobiles, three-wheel vehicles, trailers and campers.

B. **TOWN PROPERTY** shall mean any and all real property owned by, leased to, or in the possession and/or under the control of the Town of Andover or any agency, board, commission or committee of the Town.

C. **PERSON** shall mean any individual, corporation, association, partnership, company, firm or other aggregation of individuals.

SECTION 2. LIMITED OPERATION ON TOWN PROPERTY

No person shall permit or cause a motorized vehicle to be on Town Property and no person shall operate or cause to be operated a motorized vehicle on Town Property except that a properly registered motorized vehicle may be on and/or may be operated on Town roads and parking lots so designated by the Town for the purposes authorized by the Town.

SECTION 3. SNOWMOBILES

Notwithstanding any other provisions herein, snowmobiles may be operated on those areas of Town property which have been so designated by the Board of Selectmen at such times as three or more inches of snow cover the area.

SECTION 4. CLOSING HOURS

No person shall permit or cause a motorized vehicle to be on Town property between the hours of sunset and sunrise, except in authorized areas.

SECTION 5. SUSPENSION OF ORDINANCE FOR SPECIAL TOWN MEETING AND ACTIVITIES AND EMERGENCIES

If there is need for motor vehicles to be on, or to be operated on, Town property in connection with special Town events and activities and in case of an emergency, the First Selectman is authorized to suspend the application of this Ordinance for such time and for such Town property as may reasonable be required.

SECTION 6. VIOLATIONS

Any person or owner of any motorized vehicle violating the provisions of this Ordinance shall be fined not more than \$100.00.

Passed by Town Meeting vote January 10, 1991.

Published Manchester Herald January 17, 1991.

ORDINANCE ESTABLISHING MUNICIPAL AGENT FOR ELDERLY PERSONS

91-02

BE IT HEREBY ORDAINED BY THE TOWN OF ANDOVER:

1. ESTABLISHMENT OF MUNICIPAL AGENT FOR ELDERLY PERSONS.

In accordance with the provisions of Section 7-127b of the Connecticut General Statutes, Revision of 1958, as amended, there is hereby established a municipal agent for elderly persons for the Town of Andover. Such municipal agent shall be a member of the Towns Commission on the Aging, a member of another Town agency that serves elderly persons, an elected official of the State of Connecticut or the Town or a responsible resident of the Town who has demonstrated an interest in the elderly or has been involved in programs in the field of aging.

2. TERM OF OFFICE

Each Municipal Agent shall be appointed by the First Selectman and shall serve for a term of two years or until a successor has been duly appointed and qualified, and may be re-appointed. The term of the initial municipal agent appointed by the First Selectman pursuant to this Ordinance shall commence on February 1, 1991, and expire on January 31, 1993. Vacancies for an unexpired term of any municipal agent shall be filled by the First Selectman.

3. ASSISTANT MUNICIPAL AGENT

If in the sole discretion of the First Selectman more than one agent is necessary to carry out the powers and duties of the municipal agent as described in Section 4 below, the First Selectman from time to time may appoint one or more assistant agents to serve a term of office coextensive with the term of office of the Municipal Agent.

4. POWERS AND DUTIES

Each Municipal Agent shall (1) disseminate information to elderly persons in the Town and assist such persons in learning about the community resources available to them and publicize such resources and benefits; (2) assist elderly persons in applying for federal and other benefits available to such persons; and (3) on January 1, 1992, and at least annually thereafter, submit written reports to the First Selectman, the Town Meeting, the Town's Commission on Aging and the State Department on Aging regarding the services that the Municipal Agent has provided, the needs and problems of the elderly and any recommendations for municipal action with regard to elderly persons. Each Municipal Agent shall attend at least one training session sponsored by the State of Connecticut Department on Aging pursuant to Section 7-127b(d) of the Connecticut General Statutes, revisions of 1958, as amended.

5. COMPENSATION

Each Municipal Agent and each assistant agent shall serve without compensation. Necessary resources for each such Municipal Agent or assistant agent to perform the duties of the office shall be provided by the Town through proper appropriated procedures.

Signed at Andover, Connecticut, this 15 day of January, 1991.

Passed by Town Meeting vote January 10, 1991.

Published Manchester Herald January 17, 1991.

AN ORDINANCE REGULATING THE RECYCLING OF SOLID WASTE IN THE TOWN OF ANDOVER

91-03

BE IT ORDAINED BY THE TOWN MEETING:

SECTION 1. ESTABLISHMENT OF TOWN RECYCLING PROGRAM

There is established a Town Solid Waste Recycling Program with standards to affect the maximum level of recycling of solid waste and source separation.

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SECTION 2. ADMINISTRATOR OF TOWN RECYCLING PROGRAM.

The Board of Selectmen shall appoint an Administrator of the Recycling Program who shall be vested with full powers to develop and operate a recycling program consistent with this Ordinance and the laws and regulations of the State.

SECTION 3. DECLARATION OF POLICY.

The recycling of Solid Waste is a responsibility of the Town of Andover and of each resident and business within the Town as contained in the Connecticut General Statutes (Conn. Gen. Stat.) Section 22a-241 to 22a-241h inclusive, and 22a-220 to 22a-220a inclusive, as amended by Public Acts Nos. 90-220 and 90-249. It is consequently found and declared that:

(a) Pursuant to Conn. Gen. Stat. Section 22a-241b as amended by Public Act No. 90-220, on and after January 1, 1991 each person who generates solid waste from residential property shall separate from other solid waste the items designated for recycling pursuant to said statute and every other person (business or institution) who generates solid waste shall make provision for the separation from other solid waste of the items so designated;

(b) Under Conn. Gen. Stat. Section 22a-241(b), as amended, the Town shall adopt an ordinance to assure that persons, businesses and waste haulers comply with recycling requirements and the Town shall provide the Department of Environmental Protection with the name, address and phone number of the person to receive information and respond to questions regarding recycling from the Department on behalf of the Town;

(c) The public health, safety and welfare of the Town shall be best served by the recycling of those items so designated by the Department of Environmental Protection and by disposing of such other solid waste in accordance with Town Ordinance "Ordinance to Regulate Andover Disposal Area," as amended;

(d) The enactment of this ordinance will enable the Town to effectuate the separation and collection of certain recyclable materials, thereby fulfilling the Town's obligations under applicable State Law and Regulations.

(e) The successful operation of the Recycling Program may require the issuance of regulations and instructions setting forth procedures to be followed by residents, businesses and institutions, collectors and others. The Administrator of the Recycling Program is authorized and directed to promulgate such regulations and instructions which shall be binding upon all persons within the Town in order to effect an efficient and economical recycling program consistent with this ordinance and applicable State Law and Regulations.

SECTION 4. DEFINITIONS

For the purpose of this Ordinance, the terms below shall have the following meanings:

(a) CARDBOARD means corrugated boxes and similar corrugated and Kraft paper materials which have a minimum of contamination by food or other material.

(b) COLLECTOR means any person who holds himself out for hire to collect solid waste from residential, business, commercial and other establishments within the Town and particularly such person who has been authorized by the Town to collect solid waste within the Town.

(c) COMMISSIONER means the Commissioner of Environmental Protection of the State of Connecticut, or his authorized agent.

(d) GENERAL STATUTES means the General Statutes of Connecticut as amended.

(e) GLASS FOOD AND BEVERAGE CONTAINER means a glass bottle or jar of any size or shape used to package food or beverage products suitable for human or animal consumption.

(f) INTERMEDIATE PROCESSING FACILITY or INTERMEDIATE PROCESSING CENTER means a facility where glass, metals, paper products, batteries and other items are removed from the waste stream for recycling or reuse.

(g) LEAVES mean foliage of trees.

(h) METAL FOOD AND BEVERAGE CONTAINER means an aluminum, bimetal, steel, tin-plated steel or other metallic can, plate or tray of any size or shape used to package food or beverage products suitable for human or animal consumption.

(i) NEWSPAPER means used or discarded newsprint, which has a minimum of contamination by food or other material.

(j) OFFICE PAPER means used or discarded high-grade white paper and manila paper including, but not limited to, paper utilized for file folders, tab cards, writing, typing, printing, computer printing and photo-copying, which is suitable for recycling and which has a minimum of contamination, excluding office paper generated by households.

(k) PERSON means any individual, organization, corporation, trust, partnership, foundation, group, association or establishment or any combination of them.

(l) RECYCLABLES or ITEMS REQUIRED TO BE RECYCLED or STATUTORY RECYCLABLE MATERIALS means cardboard, glass food and beverage containers, metal food and beverage containers, newspaper, office paper, scrap metal, storage batteries and waste oil, as defined herein and such other items as may be designated by the Commissioner.

(m) RECYCLE means to separate or divert an item or items from the solid waste stream for the purposes of processing it or causing it to be processed into a material product, including the production of compost, in order to provide for disposition of the item or items in a manner other than incineration or land filling, which will best protect the environment.

(n) RECYCLING means the processing of solid waste to reclaim material there from.

(o) RECYCLING BOX or RECYCLING CONTAINER means any box or container designated as a recycling container by the Town.

(p) RECYCLING FACILITY or RECYCLING CENTER or RECYCLING DROP-OFF CENTER means land and appurtenances thereon and structures where recycling is conducted including, but not limited to, and Intermediate Processing Center. The Town's Recycling Drop Off Center shall be the Landfill site on Shoddy Mill Road.

(q) RESIDENTIAL PROPERTY means real estate containing one or more dwelling units excluding hospitals, institutions, motels and hotels.

(r) RESOURCES RECOVERY FACILITY means a facility utilizing processes to reclaim energy from municipal solid waste.

(s) SCRAP METAL means used or discarded items which consist predominately of ferrous metals, aluminum, brass, copper, lead, chromium, tin, nickel, or alloys thereof, including but not limited to "white goods" and metal food containers.

(t) SCRAP TIRES means discarded rubber or synthetic rubber tires used by or manufactured for vehicles including but not limited to, automobiles, trucks, buses and trailers.

(u) SEPARATE means to prepare items for recycling by dividing them into designated categories.

(v) SOLID WASTE means solid, liquid, semisolid or contained gaseous material that is unwanted or discarded including, but not limited to, material processed at a recycling facility.

(w) SOLID WASTE FACILITY means any solid waste disposal area, volume reduction plant, transfer station, wood burning facility or biomedical waste treatment facility.

(x) SOLID WASTE DISPOSAL AREA means land and appurtenances thereon and structures including a landfill or other land disposal site used for the disposal of more than ten cubic yards of solid waste.

(y) STATE means the state of Connecticut.

(z) STORAGE BATTERY means lead acid batteries or other batteries used in motor vehicles such as automobiles, airplanes, boats, recreational vehicles, tractors and like applications.

(aa) TOWN means the Town of Andover, and includes authorized officers, boards, commissions and agencies of the Town.

(bb) TRANSFER STATION means the site and depository to which solid waste and items to be recycled may be deposited for hauling to such place designated or approved by the Town.

(cc) WASTE OIL means crankcase oil that has been utilized in internal combustion engines.

SECTION 5. OPERATION OF RECYCLING PROGRAM

a) Each person owning or occupying property, whether it be residential, business or institutional, shall separate or cause to be separated from other solid waste the following items for recycling:

- 1) Cardboard
- 2) Glass food and beverage containers
- 3) Metal food and beverage containers
- 4) Newspaper
- 5) Scrap metal
- 6) Storage batteries
- 7) Waste oil
- 8) Office paper (business and institutional users only) and
- 9) Such other items as may be designated in the future by the Town or the State.

b) All persons shall either use the Town's Recycling Drop Off Center or engage the services of collectors or other person authorized hereunder to dispose of recyclable items.

c) The Town shall cause containers designated for recycling items to be located at the Town's Recycling Drop-Off Center.

d) Items to be recycled shall no longer be commingled with other solid waste and neither solid waste containing items to be recycled or items to be recycled containing solid waste shall be

accepted at the Towns Recycling Drop-Off Center or by Collectors or by any other person authorized hereunder to receive items to be recycled.

e) All persons disposing of items to be recycled at the Town's Recycling Drop-Off Center or disposing of items to be recycled through Collectors shall place such items to be recycled in appropriate recycling containers.

f) Collectors shall deliver items to be recycled to an intermediate processing center or to such other locations authorized by the State or by the Town and shall pay or otherwise arrange for payment of recycling charges.

g) It shall be a violation of this Ordinance for any person not authorized by the Town to collect or pick up, or cause to be collected or picked up, any items to be recycled which have been deposited at the Towns Recycling Drop-Off Center or which have been placed outside or otherwise set aside for collection. From the time of deposit at the Towns Recycling Drop-Off Center recyclable items become the property of the Town.

h) Nothing in this Ordinance shall abridge the right of any person, partnership, firm or corporation to give or sell their recyclables, including deposit beverage containers, to any person, partnership, firm corporation or recycling program lawfully operated for profit, non-profit or charitable purposes, provided that such recyclable shall not have been deposited at the Town's Recycling Drop Off Center set out on the curb, or placed at any designated collection or pick-up site authorized by the Town or its designated agent.

i) The Administrator of the Recycling Program shall be responsible for and shall arrange for the items for recycling listed above generated from the residential properties to be collected and delivered to a site in accordance with the provisions of this Ordinance applicable State Law and Regulations.

j) The Administrator of the Recycling Program shall take appropriate action to cause each owner of property used for business, institutional and/or other nonresidential purposes, at such owners expense, to collect and have recycled the items listed above in accordance with the provisions of this Ordinance and applicable State Laws and Regulations.

k) The Administrator of the Recycling Program may require non-residential generators to submit to the Town plans for recycling and periodic reports setting forth specified data relating to the amount and nature of items recycled.

l) The Administrator of the Recycling Program, with the consent of the Board of Selectmen, may require the separation and recycling of items in addition to those designated above.

SECTION 6. REGULATION OF COLLECTORS:

(a) Any collector hauling solid waste generated by residential, business or other establishments within the Town shall register in the Town within 30 days of the effective date of this ordinance and shall disclose the name of any other municipality in which such collector hauls solid waste. The Administrator of the Recycling Program is authorized and directed to establish reasonable requirements and qualifications for a person to be a collector of solid waste within the Town. A permit and payment of a permit fee may be required.

(b) The door of any private vehicle used to haul solid waste generated within the Town shall be clearly marked with the business name and address of the hauler.

(c) The Administrator of the Recycling Program shall, by mail, give notice of this Ordinance, and any other provisions promulgated for the collection, hauling, processing and marketing of items required to be recycled, to all collectors registered under subsection (a) of this section. After such notice, any collector who has reason to believe that a person from whom he has collected solid waste has discarded items required to be recycled with such solid waste, shall promptly notify the Administrator of the Recycling Program of the alleged violation. Upon request by the Administrator of the Recycling program, a collector shall provide a warning notice, by tag or other means, to any person suspected by the collector or by the Town of violating separation requirements. Each collector shall also assist the Town to identify any person responsible for creating loads containing significant quantities of items required to be recycled mixed with solid waste which are delivered to a Resources Recovery Facility or Solid Waste Facility by the collector.

(d) On and after January 1, 1991, as required by Section 4(b) of Public Act No. 90-220, owner or operator of each Resources Recovery Facility or solid waste facility who has reason to believe, upon visual inspection, that a load of solid waste which is delivered to the Facility, contains significant quantities of any items required to be recycled, is required to provide prompt notification of such belief to the driver of the vehicle delivering the load and to the Administrator of the Recycling Program if the load originated within the Town. Under said Section 4(b) of the Public Act 90-220, the owner or operator of each Resources recovery Facility or Solid Waste Facility is also required to conduct unannounced inspections of loads delivered to Resources Recovery Facilities or Solid Waste Facilities.

(e) Any collector who dumps more than one cubic foot in volume of solid waste at one time in an area not designated for such disposal or who knowingly mixes other solid waste with items required to be recycled shall for a first violation be liable for a civil penalty of one thousand

dollars and for a subsequent violation will be liable for a civil penalty of five thousand dollars. The Town or the Attorney general, at the request of the Commissioner, may bring an action under Section 3(f) of Public Act 90-220, which action shall have precedence, in the order of trial as provided in Section 52-191 of the General Statutes.

SECTION 7. CHARGE FOR RECYCLING SERVICES.

The Town, by action of the Board of Selectmen, may levy a charge for the collection and/or processing of solid waste brought to the Towns Recycling Drop Off Center for Recycling.

SECTION 8. POWER TO CONTRACT FOR SERVICES.

The Town may contract with other persons for assistance in complying with the provisions of this Ordinance.

SECTION 9. LIASON WITH THE STATE.

(a) The Administrator of the Recycling Program shall serve as the Town Liaison Agent with the Commissioner with respect to receiving information and responding on behalf of the Town to questions regarding recycling from the Department of Environmental Protection. In the event that the person serving as the Town Liaison Agent with the Commissioner is changed, the Town, within thirty days of change, shall provide the Commissioner with the name, address and telephone number of the newly designated person.

(b) Notices from collectors, operators of Resources Recovery Facilities and Solid Waste Facilities referred to in Section 6(c) and (d) above, shall be submitted to the Administrator of the Recycling Program.

SECTION 10. ANNUAL REPORT TO DEPARTMENT OF ENVIRONMENTAL PROTECTION.

On or before July 1, 1991, and annually thereafter, the Town, or its designated regional agent, shall provide a report to the Commissioner of Environmental Protection describing the measures taken during the preceding year to meet its obligations under Section 2 of Public Act 90-220. The Commissioner shall provide the Town with a form for such report. The report shall include, but not be limited to the following:

- (a) A description of the efforts made by the Town to promote recycling;
- (b) A description of the Towns efforts to ensure compliance with separation requirements;
- (c) The amount of each recyclable item contained in its' solid waste stream which has been delivered to a recycling facility as reported to the Town or its' designated regional agent by the owner or operator of the recycling facility or by a scrap metal processor; and
- (d) The amount of solid waste generated within the Towns' boundaries which has been delivered to a Solid Waste Facility.

SECTION 11.PENALTIES.

(a) Notwithstanding any other sections of the General Statutes to the contrary, the Town, acting by its' Administrator of the Recycling Program, may impose a penalty not to exceed \$500.00 for each violation by a commercial establishment of the requirements of Subsection (c) of Section 22a-241b of the General Statutes as amended by Section 1 of the Public Act 90-220 as set forth in Section 5 of this ordinance.

(b) The owner or operator of a solid waste facility who fails to notify the Town about the delivery of loads of solid waste originating from the Town containing quantities of items to be recycled as required by this Ordinance, shall be subject to a warning by the Town or the Commissioner for a first violation and to a civil penalty of \$500.00 for any subsequent violation. If the Town fails to receive such notification as required, the Town, or Attorney General, at the request of the Commissioner, may bring an action under Section 3 of Public Act 90-249.

(c) Any person who violates the provisions of this Ordinance shall, in addition to other legal remedies available to the Town, be cited or fined not more than one hundred dollars for each offense, and each violations of this Ordinance or of regulations and instructions promulgated pursuant to this Ordinance, shall be a separate violation.

This Ordinance and the regulations and instructions promulgated pursuant to this ordinance may be enforced by citations issued by the Administrator of the Recycling Program. Before issuing any citation the Administrator or the Recycling Program shall issue a written warning providing notice of the specific violation in accordance with Connecticut General Statutes Section 7-14B(c)(10)(A).

(d) The citation hearing procedure provided in Connecticut General Statutes Section 7-152c is established as the Towns citation hearing procedure, which may be followed when citations pursuant to Section 15(c) of this Ordinance are issued. The chief executive officer of the Town is authorized to issue such rules and regulations governing the operation of the

citation hearing procedure so long as such rules and regulations are consistent with Connecticut General Statute Section 7-152c.

SECTION 12.SEVERABILITY.

If any word, clause, section or provision of this Ordinance is found to be invalid, such finding shall not affect the validity of any other part provided that such other part may be given effect without reference to the invalid part or parts.

SECTION 13.EFFECTIVE DATE.

The effective date of this Ordinance shall be the sixteenth day following the date of publication in a newspaper of the Ordinance or a summary of the Ordinance as adopted by the Town Meeting. Pursuant to Connecticut General Statute Section 7-157(b) a summary of the Ordinance may be published in lieu of the Ordinance.

Passed Town Meeting January 10, 1991.

Published Manchester Herald February 15, 1991.

ORDINANCE PROVIDIING FOR THE ELECTION OF JUSTICES OF THE PEACE FOR THE TOWN OF ANDOVER

96-01

The number of Justices of the Peace for the Town of Andover to be elected at the next regular meeting for such office and thereafter shall be fifteen. Such election shall be held in accordance with applicable State Statutes.

Voted at Annual Budget Meeting May 8, 1996.

Published in Rivereast May 17, 1996.

Became effective fifteen (15) days after publication.

TOWN OF ANDOVER ORDINANCE PROVIDING FOR PROPERTY TAX RELIEF PROGRAM FOR CERTAIN HOME OWNERS AGED 65 OR OVER OR PERMANENTLY AND TOTALLY DISABLED.

96-02

BE IT ORDAINED BY THE TOWN MEETING OF THE TOWN OF ANDOVER

SECTION 1.PURPOSE.

There are property owners within the Town of Andover ("Town") who face hardship and difficulties in paying real property taxes even though they may be receiving some real property tax relief by virtue of other existing tax relief programs. Connecticut General Statute 12-129n authorizes a Town, by vote of its legislative body on recommendation of its Board of Finance to provide additional tax relief for certain home owners who are age 65 or permanently and totally disabled. The purpose of this ordinance is to implement the additional property tax relief program for elderly and disabled persons authorized by said Statute.

SECTION 2.ELIGIBILITY.

Requirements for participating in the real property tax relief program established by this Ordinance are as follows:

(a) Participants shall be residents of the Town who (1) are sixty-five years of age and over, or (2) whose spouses, living with them, are sixty-five years or over , or (3) who are sixty-five years of age or over and the surviving spouse of a taxpayer qualified under this Ordinance at the time of the taxpayers death;

(b) Participants shall be residents of the Town and under the age of sixty-five and eligible in accordance with applicable federal regulations to receive permanent total disability benefits under Social Security or under any federal state or local government retirement or disability plan;

(c) The real property for which tax relief is available under this Ordinance shall be occupied as the principal residence taxpayers who have been taxpayers in the Town for at least one year immediately preceding receipt of tax benefits under this Ordinance;

(d) An applicant who is not the record owner of a principal residence but who holds a life use in said property or who is the beneficiary of a trust holding such property, shall be eligible to participate if applicant meets all other requirements and establishes that applicant is responsible for payment of taxes assessed against the property;

(e) All participants shall not exceed the income standards set forth in the "Circuit Breaker" tax Relief application with respect to maximum income allowable during the calendar year preceding the year in which application is made for tax relief by more than 10% for married couples and 15% for a single person.

(f) No property tax relief under this Ordinance when combined with tax relief under Connecticut general Statutes Section 12-129b-12-129d, inclusive, 12-129h and 12-170aa shall exceed the aggregate of the total amount of the tax which otherwise would be laid against the taxpayer;

(g) All applicants shall declare all sources of income received during the prior calendar year as part of their application. Total income shall include, but not be limited to all income derived from wages, social security, interest and dividends.

SECTION 3.TAX RELIEF.

Tax Relief Eligible taxpayers shall be entitled to an exemption of \$12,000.00 in the assessment valuation of the qualifying real property.

SECTION 4.APPLICATIONS.

Applications for property tax relief shall be filed by eligible persons during the period commencing on February 1 and continuing through May 15. Participants in the program shall re-file their application with the Town Assessor biennially.

SECTION 5. LIMIT ON TOTAL ABTEMENT OF TAXES UNDER TAX RELIEF PROGRAM.

The total abatement of property tax revenues under this program shall not exceed 10% of the total real property tax assessed within the Town in the preceding tax year.

SECTION 6.TAX LIENS.

The Town shall not establish a tax lien in the amount of the tax relief granted except in the situation where the total tax relief benefiting a taxpayer under this program and under other tax relief programs provided by the Connecticut General Statutes 12-129b to 12-129d, inclusive, 12-129h and 12-170aa exceeds 75% of the property tax for which such taxpayer would be liable but for the tax relief benefits, in which case, the Town shall establish a lien on such property in the amount of the total tax relief granted, plus interest applicable to the total of such unpaid taxes of 6% per annum. Any such lien shall have priority in the settlement of a taxpayers' estate

SECTION 7. TRANSFER OF PROPERTY OR DEATH OF PARTICIPANT.

Unless otherwise provided in this Ordinance, the real property tax relief provided by this Ordinance shall terminate upon the death of the participant or upon the sale or transfer of the property by the participant. In such a case, the relief shall be prorated to reflect the fractional portion of such property occupied by the participant.

Passed by Special Town Meeting September 17, 1996.

Published in Rivereast September 20, 1996.

Revision to Section 2E and Section 3 passed at Town Meeting September 9, 2008.

Effective beginning with the 2009-2010 Budget.

Published in the Rivereast September 12, 2008.

Ordinance revisions become effective 21 days after publication.

ESTABLISHMENT BY ORDINANCE A CAPITAL IMPROVEMENT PLANNING COMMITTEE.

97-01

The Selectmen will appoint a Capital Improvement Planning Committee for the purpose of creating a 6-10 year Capital Improvement Plan, updating it annually and making recommendations to the Board of Finance for Capital Expenditures.

Passed at Annual Town Meeting October 27, 1997.

Published in Rivereast November 7, 1997.

Ordinance to become effective 15 days after publication.

ORDINANCE FOR APPOINTMENTS OF ALTERNATE MEMBERS TO APPOINTED BOARDS.

99-01

BE IT ORDAINED BY THE TOWN OF ANDOVER.

That the Board of Selectmen be authorized to make appointments of alternate members to appointed boards delineated in Section 606 of the Town Charter.

Passed at Town Meeting October 25, 1999.

Published in Rivereast October 29, 1999.

Ordinance to become effective 15 days after publication.

IT IS HEREBY RESOLVED THAT THE FOLLOWING BE ENACTED AS AN ORDINANCE;

00-01

1. No building permit shall be issued for the improvement of property when taxes or water or sewer rates, charges or assessments imposed by the Town of Andover are delinquent for such property.

2. The provisions of Section 1 notwithstanding, the Building Official, after consultation with the Town Sanitarian, may issue a building permit when the interests of public health, safety or welfare would be better served as the result of the improvements sought to be made pursuant to such building permit application.

Passed by Selectmen's Meeting Vote February 2, 2000.

Published in Rivereast February 11, 2000.

Became effective fifteen (15) days after publication.

TAX REFUNDS UNDER \$5.00

00-02

This Ordinance waives refunds for excessive tax payments under \$5.00 as provided by Section 12-129 of the General State Statutes.

Approved Board of Selectmen Meeting Wednesday October 4, 2000.

Effective 15 days after publication – October 20, 2000.

ORDINANCE PROVIDING FOR THE ESTABLISHMENT OF FIRE LANES.

00-03

a) Upon finding that the parking lot of any vehicle in any area would hinder or obstruct the free access of firefighting equipment to any commercial structure or building otherwise open to the public, the Andover Fire Marshal may designate any portion of any roadway or driveway as a Fire Lane. No person shall permit any vehicle to remain stationary within the limits of any such designated Fire Lane.

b) Upon establishment of any such Fire Lane, the Andover Fire Marshal shall send written copy of such order to the owner of the location or to the agent of such owner. Upon receipt of such order the owner shall cause to be erected or installed, adequate signs, markings or other devices to delineate said Fire Lane.

c) Any motor vehicle found standing in a Fire Lane which has been established in accordance with this Ordinance may be towed upon the direction of the Fire Chief or their designee, to any public or private parking facility, and any towing or subsequent storage fees shall be borne by the registered owner of such vehicle.

Passed by Selectmen's Meeting Vote November 1, 2000.

Ordinance to become effective 21 days after publication.

TAX ABATEMENT PROGRAM FOR THE ANDOVER VOLUNTEER FIRE DEPARTMENT

01-01

PURPOSE : The Town of Andover in recognition of the benefits provided to the community by the dedicated residents of the Town of Andover who volunteer their time and service as firefighters, emergency medical technicians, and ambulance drivers, hereby establishes pursuant to CGS Section 12-81w, a tax abatement program as an incentive in recruiting and retaining such volunteers.

SCOPE: All firefighters, emergency medical technicians and ambulance drivers who are volunteer members of the Andover Volunteer Fire Department who own real or personal property within the Town of Andover and who meet the criteria established below are eligible to participate in the tax abatement program.

DEFINITIONS:

- 1) A firefighter, emergency medical technician, or ambulance driver shall be a regular, active volunteer member of the Andover Volunteer Fire Department who provides at least one of the aforementioned services for the Fire Department.
- 2) Emergency incidents are events that the Fire Department responds to with emergency services and for which all members of the Department receive notification. No credit will be awarded for non-emergency events eg drills or meetings.
- 3) Firefighter 1 certification is defined as certification to the Firefighter 1 level by the State of Connecticut Commission on Fire Prevention and Control or equivalent based on NFPA Standard 1001. Emergency Medical Technician-Basic (EMT-8) level by the Connecticut Office of Emergency Medical Services.
- 4) A year of service shall be defined as the 12 month period commencing from the March 1 immediately following the date that the Firefighter or Emergency Medical Technician became a volunteer member of the Fire Department or the 12 month period from the anniversary date thereof.
- 5) Property shall be defined as the real estate taxes, motor vehicle taxes and personal property taxes for the property in the Town of Andover that is owned by the member either individually, jointly, or as a tenant in common.

ELIGIBILITY : In order to be eligible for this program a member must be a regular active member of the Fire Department. A regular active member shall attend at least 15% of the Departments emergency incidents. If any member does not meet his/her 15% of calls he/she will not be eligible for the tax abatement for that year, nor will he/she receive credit for an active year of service. However, he/she will not lose any years already earned should he/she become active again. Any member with 25 years of active service and who has been recognized as a Life Member in the organization shall continue to receive an abatement of \$1,000.00 annually for as long as he/she continues to reside and own property in the Town of Andover.

NOTICE OF ELIGIBILITY: No later than January 1st of each year the Chief of the Department shall provide to the Board of Selectmen and the Tax Collector a written list of the Fire Departments members who are eligible for the tax abatement program for the taxes due July 1st of that year. This list shall contain the home address of each eligible member, the eligible members years of active service as of March 1st of that year and shall specify the maximum abatement, as set forth below, for which the member is eligible.

ABATEMENTS: Abatements shall be granted to eligible members as follows;

1. Members who have met the eligibility requirements set forth above, but who have less than five (5) years of active service and are not certified as a Firefighter 1 or an Emergency Medical Technician, shall be eligible for a tax abatement of \$250.00.
2. Members who have met the eligibility requirements set forth above, but who have at least five (5) years of active service and are certified as a Firefighter 1 or an Emergency Medical Technician shall be eligible for a tax abatement of \$500.00.
3. Members who have met the eligibility requirements set forth above, but who have at least five (5) years of active service but less than seven (7) years of active service and are not certified as a Firefighter 1 or an Emergency Medical Technician shall be eligible for a tax abatement of \$500.00,
4. Members who have met the eligibility requirements set forth above, and who have at least five (5) years of active service but less than seven (7) years of active service and are certified as a Firefighter 1 or Emergency Medical Technician shall be eligible for a tax abatement of \$750.00.
5. Members who have met the eligibility requirements set forth above, and have at least seven (7) years of active service but less than ten (10) years of active service and are not certified as a Firefighter 1 or Emergency Medical Technician shall be eligible for a tax abatement of \$750.00.
6. Members who have met the eligibility requirements set forth above, and who have at least seven (7) years of active service but less than ten (10) years of active service and are certified as a Firefighter 1 or an Emergency Medical Technician shall be eligible for a tax abatement of \$1,000.00.
7. Members who have met the eligibility requirements set forth above, and who have at least ten (10) years of active service shall be eligible for a tax abatement of \$1,000.00.
8. The tax abatement will only be applied towards personal property or real estate taxes, not business property taxes.

9. Any unused portion of the abatement shall not be carried over into subsequent years, but may be applied to real property owned by qualified members spouse if both reside in said property.

10. The tax abatement shall be credited toward the eligible members tax liability at the beginning of each Fiscal year.

11. No eligible member shall receive any abatement if *any* tax in that members name is delinquent as of July 1st.

ABATEMENT SCHEDULE

ACTIVE YEARS	BASE AMOUNT	CERTIFIED FF1/EMT
UNDER 1	\$0	\$0
1	\$250	\$500
2	\$250	\$500
3	\$250	\$500
4	\$250	\$500
5	\$500	\$750
6	\$500	\$750
7	\$750	\$1,000
8	\$750	\$1,000
9	\$750	\$1,000
10+	\$1,000	\$1,000

Passed at Annual Budget Meeting vote May 8, 2001.

Passed by Referendum vote May 15, 2001.

Ordinance to become effective 21 days after publication.

Sections 9 & 11 revised Selectmen's Meeting August 3, 2005.

Published September 2, 2005 in the Journal Inquirer.

Revised Ordinance becomes effective 21 days after publication.

PLOWING AND THROWING SNOW AND ICE INTO THE STREET.

01-02

BE IT ORDAINED:

Section #1 – No person shall plow, throw or cause to be thrown or put any snow or ice for private property into any public highway in the town.

Section #2 – The penalty for violation of this ordinance shall be \$50.00 for each violation.

Approved Board of Selectmen's meeting December 5, 2001.

Published December 14, 2001 in the Rivereast.

Ordinance becomes effective 21 days after publication.

PROPERTY TAX LIABILITY ORDINANCE

01-03

BE IT ORDAINED BY THE TOWN OF ANDOVER:

Property tax liability shall be incurred as of July 1. Real estate and personal property taxes greater than \$100.00 shall be due 25% on July 1st, 25% on October 1st, 25% on January 1st and 25% on April 1st. Real estate and personal property taxes of \$100.00 or less shall be paid on July 1. One hundred percent (100%) of motor vehicle taxes shall be due on July 1. Supplemental motor vehicle taxes shall be due on January 1.

Approved Special Town Meeting July 30, 2003.

Published August 8, 2003 in the Rivereast.

Ordinance becomes effective 21 days after publication.

DELINQUENT MOTOR VEHICLE TAX ORDINANCE

02-03

BE IT ORDAINED BY THE TOWN OF ANDOVER;

That any taxpayer whose vehicle tax has been reported as delinquent to the Department of Motor Vehicles is charged a \$5.00 fee.

Passed by Selectmen's Meeting September 3, 2003.

Published September 12, 2003 in the Rivereast.

Ordinance becomes effective 21 days after publication.

BUILDING DEPARTMENT FEE ORDINANCE

03-03

BE IT ORDAINED BY THE TOWN OF ANDOVER;

That the Building Department shall charge a \$140.00 permit fee and a \$10.00 state tax fee for all applications for variance, appeal of decision of Zoning Agent, special permit, site plan review and zone changes which require Zoning Board of Appeals or Planning and Zoning Commission action.

Passed by Selectman's Meeting October 1, 2003.

Published October 10, 2003 in the Rivereast.

Ordinance becomes effective 21 days after publication.

CONSTRUCTION DEBRIS ORDINANCE

01-04

BE IT ORDAINED BY THE TOWN OF ANDOVER:

On-site dumpsters will be required to contain all debris for construction, demolition and renovation projects which require a permit.

Original Resolution passed December 1, 1999.

Ordinance passed at Selectmen's meeting February 4, 2004.

Published February 13, 2004 in the Rivereast.

Ordinance becomes effective 21 days after publication.

Revised February 2, 2005, Board of Selectmen.

Published May 23, 2005 in the Journal Inquirer.

Ordinance becomes effective 21 days after publication.

CODE OF ETHICS ORDINANCE.

03-21

1. **TITLE.** This Ordinance shall be known and may be cited as the "Code of Ethics." It repeals and totally replaces the "Creation of an Ethics Commission for the Town of Andover" Ordinance, previously adopted by the Special Town Meeting on June 1, 2005.

2. **AUTHORITY.** This Code is legally authorized by the Connecticut General Statutes Section 7-148h, and Town of Andover Charter Section 1003.

3. **PURPOSE.** The purpose of this code is to guide elected and appointed Town officials, Town employees and citizens by establishing standards of conduct for public officials and public employees. Public office or employment is a public trust. The trust of the public is essential for government to function effectively. Public policy developed by government officials and public employees affects every citizen of the Town, and it must be based on honest and fair deliberations and decisions. Good government depends on decisions which are based upon the merits of the issue and are in the best interests of the Town as a whole, without regard to

personal gain. This process must be free from threats, favoritism, undue influence and all forms of impropriety so that the confidence of the public is not eroded. By enacting this Code, the Town of Andover seeks to maintain and increase the confidence of our citizens in the integrity and fairness of their Town government. In pursuit of that goal, these standards are provided to aid those involved in decision making to act in accordance with the public interest use objective judgment, assure accountability, provide democratic leadership, and uphold the respectability of our Town government.

4. **DEFINITIONS.** As used in this chapter, the following words or phrases shall have the meanings ascribed to them in this section:

ADVISORY OPINION: A written response by the Board of Ethics to a request by a public official or public employee asking whether his or her own present or potential action may violate any provision of this Code of Ethics.

BOARD: The Town of Andover Board of Ethics established in Section 5 of this Ordinance.

BUSINESS: Any entity through which business for profit or not for profit is conducted, including a corporation, partnership, proprietorship, firm, enterprise, franchise, association, organization, or self-employed individual.

BUSINESS WITH WHICH ONE IS ASSOCIATED: A business of which the person or a member of their immediate family is a director, officer, owner, employee, compensated agent, or holder of stock which constitutes five percent or more of the total outstanding stock of any class.

CONFIDENTIAL INFORMATION: Any information, whether transmitted orally or in writing, which is obtained by reason of the public position or office or employment held and is of such nature that it is not at the time of transmission a matter of public record per the Connecticut Freedom of Information Act, C.G.S. Section 1-200, et seq., or public knowledge.

EMPLOYEE: Any person receiving a salary, wages or other compensation from the Town for services rendered.

FINANCIAL INTEREST: Any interest representing an actual or potential economic gain or loss, which is neither trivial nor shared by the general public.

GIFT: Anything of value, including entertainment, food, beverage, travel and lodging given or paid to a public official or public employee, to the extent that a benefit of equal or greater value is not received in return.

A gift does not include:

A political contribution otherwise reported as required by law or a donation or payment as described or defined in subdivision (9) or (11) of subsection (b) of the Connecticut General Statutes Section 9-601a;

Services provided by any person volunteering their time;

A commercially reasonable loan made on terms not more favorable than loans made in the ordinary course of business;

A gift received from an individual's spouse, fiancé, or fiancée, the parent, brother or sister of such spouse or such individual, or the child of such individual or the spouse of such child; Goods or services which are provided to the municipality and facilitate governmental action or functions; A certificate, plaque or other ceremonial award costing less than one hundred dollars;

A rebate or discount on the price of anything of value made in the ordinary course of a business without regard to that persons status;

Printed or recorded informational material germane to governmental action or functions;

Items of nominal value, not to exceed twenty dollars, containing or displaying promotional material;

An honorary degree bestowed upon a public official or public employee by a public or private university or college;

A meal provided at an event and/or the registration or entrance fee to attend such an event, in which the public employee or public official participates in his official capacity;

A meal provided in the home of an individual who resides in the municipality;

Gifts in-kind of nominal value not to exceed \$25.00 tendered on gift-giving occasions generally recognized by the public, provided the total value of such gifts in any calendar year from all donors do not combine to exceed one hundred dollars.

A gift worth no more than \$500.00 made in recognition of a "life event" like a wedding, birth or retirement.

IMMEDIATE FAMILY: Any spouse, child, parent, sibling or co-habiting partner of a public official or public employee, any other individual who resides in the household of the public official or public employee, and the spouse child, parent or siblings of any such spouse, child, parent, sibling, co-habiting partner or other individual who resides in the household.

INDIVIDUAL: Any natural person.

INDIVIDUAL WITH WHOM ONE IS ASSOCIATED: Any individual with whom the public official or public employee or a member of their immediate family mutually has an interest in any business.

OFFICIAL RESPONSIBILITY: The direct administrative or operating authority, whether exercised personally or through subordinates, to approve, disapprove or to otherwise direct Town government action.

PERSON: Any individual, sole proprietorship, trust, corporation, union, association, firm, partnership, committee, club or other organization or groups of persons.

PUBLIC EMPLOYEE: Any person or contractor of the Town of Andover, including the employees of the Board of Education to the extent permitted by law, full or part time, receiving wages or other compensation from or on behalf of the Town for services rendered.

PUBLIC OFFICIAL: Any elected or appointed official, whether paid or unpaid or full or part-time, of the Town or a political subdivision thereof, including members and alternate members of town agencies, boards and commissions, and committees, or any other board, commission or agency that performs legislative, administrative, or judicial functions or exercises financial authority (collectively hereinafter referred to as "body"), including candidates for any such office. Town agencies, boards commissions and committees that have sufficient authority to qualify as Public Officials subject to the requirements of this Code are the Board of Selectmen, Board of Finance, Board of Education, Regional Board of Education, Planning and Zoning Commission, Zoning Board of Appeals, Fire Commission, Library Board of Directors, Board of

Assessment Appeals, Conservation Commission, Recreation Commission, Economic Development Commission, Board of Ethics, Capital Improvement Plan Committee, Ordinance Review Committee and the Norton Fund Commission.

5. BOARD OF ETHICS.

A. There is hereby established a Board of Ethics consisting of three (3) regular members. The members shall be appointed by the Board of Selectmen and shall serve for terms of two (2) years. Terms shall commence on the first day of the month after the date of appointment.

B. Alternate member. In addition to the regular members, the Board of Selectmen shall appoint one (1) alternate member to serve in the absence of any regular member. The term of the alternate member shall be for two years, and begin on the first day of the month following appointment.

C. No more than two (2) of the three (3) members shall be of the same political party at any time.

D. All members and alternates shall be electors of the Town. No member or alternate shall (1) hold or campaign for any public office; (2) hold office in any political party committee, candidate committee, exploratory committee, or national committee as those terms are defined in Connecticut General Statutes Section 9-601, as amended; (3) serve as a public official as defined in Section 4 of this code; or (4) be a public employee of the Town.

E. Any member of the Board of Ethics shall have an unrestricted right to vote, make political contributions, attend or buy a ticket to fundraising or other political events, identify himself or herself as a member of a political party, be politically active in connection with a question that is not specifically identified with any candidate for any Town office subject to the jurisdiction of the Board of Ethics, such as a referendum or approval of a municipal ordinance, or any other question or issue of a similar character, and otherwise fully participate fully in public affairs. No member or employee of the Board of Ethics shall publicly endorse or publicly oppose any candidate for any Town office subject to the jurisdiction of the Board of Ethics per this Code in a speech, public advertisement, political advertisement, broadcast, campaign literature, or similar action or material; take part in managing the political campaign of any such candidate; or initiate or circulate a nomination petition, work as a driver transporting voters to the polls during an election, or directly solicit, receive, collect, handle, disburse or account for assessments, contributions or other funds for any such candidate; place a sign or sticker

supporting or opposing a candidate for any such Town office on real or personal property owned by the placer of such sign or sticker; or become a candidate for any such office.

6. ORGANIZATION AND PROCEDURE.

A. The Board of Ethics shall elect a chairperson who shall preside at meetings of the Board, a vice-chairperson to preside in the absence of the chairperson, and a secretary. In the absence of both the chairperson and vice-chairperson, Board members shall elect a temporary chairperson. Two members shall constitute a quorum. Except for its final determination of a complaint after a hearing per Section 8(G) of this Ordinance, a majority vote of the Board shall be required for action of the Board. The chairperson, vice-chairperson in the absence of the chair, or any two regular members may call a special meeting of the Board.

B. The Board of Ethics shall (1) compile and maintain a record of all reports, advisory opinions, statements and memoranda filed with the Board to facilitate public access to such reports and statements in instances in which such public disclosure is legally permissible; (2) issue advisory opinions with regard to the requirements of this Code of Ethics upon request of any public official, employee or agency of the Town regarding whether their own present or potential action may violate any provision of this Code. Advisory opinions rendered by the Board of Ethics shall be binding on the Board and shall be deemed to be final decisions of the Board. Any advisory opinion concerning an official or employee who requested the opinion and who acted in reliance thereon in good faith, shall be an absolute defense in any subsequent matter regarding the same issue(s) brought under the provisions of this Code; The Board may make available to the public such advisory opinions which do not invade personal privacy and take their appropriate steps in an effort to increase public awareness of this Code of Ethics; (3) at or near the end of each calendar year, the Board of Ethics shall prepare and submit to the Board of Selectmen an annual report of its actions during the preceding twelve (12) months and its recommendations, if any. Additional reports, opinions and recommendations may be submitted by the Board to the Board of Selectmen at any time. In all such submissions, the Board shall be careful to protect and uphold the confidentiality of all information regarding cases in which no final determination of violation has been made; (4) The Board shall prepare materials informing public officials and public employees of their rights and responsibilities under this Code of Ethics.

C. The Board of Ethics shall establish and from time to time amend its own rules and procedures, which shall be made available to the public at the Office of the Town Clerk.

D. The Board of Ethics may utilize or employ necessary staff or outside counsel within available appropriations and in accordance with existing rules and procedures of the Town of Andover.

7. RULES:

A. Outside Business. No public employee or public official shall engage in or participate in any business or financial transaction, including outside employment with a private business, or have a financial interest, direct or indirect, which is incompatible with the proper discharge of their official responsibilities in the public interest or which would tend to impair their independent judgment or action in the performance of their official responsibilities.

B. Gifts. (1) No public employee or public official shall solicit or accept any gift from any person which to their knowledge is interested in any pending matter within such individuals official responsibility; (2) if a prohibited gift is offered, the public employee or public official must refuse it, return it, pay the donor the full value of the gift, or donate it to a non-profit organization provided that the public employee or public official does not take the corresponding tax deduction. Alternatively, it may be considered a gift to the Town of Andover, provided it remains in the Town's possession permanently.

C. Conflict of Interest. (1) A public official or public employee shall not vote upon or otherwise participate to any extent in any matter on behalf of the Town of Andover if he or she, a business with which they are associated, an individual with whom they are associated, or a member of his or her immediate family has a financial interest in the transaction or contract, including but not limited to the sale of real estate, material, supplies or services to the Town of Andover. (2) If such participation is within the scope of the official responsibility of the public employee or public official, as soon as possible after they become aware of such conflict of interest, they shall submit written disclosure which sets forth in detail the nature and extent of such interest to their agency or supervisor, as the case may be, and to the Board of Ethics. (3) Notwithstanding the prohibition in subsection (C)(1), a public employee or public official may vote or otherwise participate in a matter in a matter if it involves a determination of general policy and the interest is shared with a substantial segment of the population of the Town of Andover.

D. Representing Private Interests. (1) Except for a public official who receives no compensation for their service to the Town other than per diem payments or reimbursement of expenses, no public employee or public official shall appear on behalf of private interests before any board, agency, commission or committee of the Town of Andover; and (2) no public employee or public official shall represent private interests against the interest of the Town in any litigation to which the Town is a party.

E. Self Representation. Nothing contained in this Code of Ethics shall prohibit or restrict a public employee or public official from appearing before any board, agency, commission or committee of the Town of Andover on their own behalf, or from being a party in any action, proceeding or litigation brought by or against the public employee or public official to which the Town of Andover is a party.

F. Confidential Information. No public employee or public official shall disclose confidential information, as defined in Section 4 of this Code, concerning Town affairs, nor shall such employee or official use such information for the financial interests of himself or herself or others.

G. Use of Town Property. No public employee or public official shall request or permit the use of Town funds, services, Town owned vehicles, equipment, facilities, materials or property for personal use, except when such are available to the public generally or are provided by official Town policy or contract for the use of such public employee or public official. Enforcement of this provision shall be consistent with the legal obligations of the Town.

H. Contracts with the Town. No public employee or public official, or a business with which they are associated, or member of their immediate family shall enter into a contract with the Town of Andover unless it is awarded pursuant to the requirements of prevailing law.

I. Financial Benefit. No public employee or public official may use their position or office for the financial benefit of themselves, a business with which they are associated, an individual with which they are associated, or a member of their immediate family.

J. Fees or Honoraria. No public employee or public official acting in their official capacity shall accept a fee or honorarium for an article, appearance or speech, or for participation at an event.

K. Bribery. No public employee or public official, or member of such individuals immediately family or business with which they are associated, shall solicit or accept anything of value, including but not limited to a gift, loan, political contribution, reward or promise of future employment based on any understanding that the vote, official action or judgment of the public employee or public official would be or had been influenced thereby.

L. Disclosure. Any public official or employee who presents or speaks to any board, committee, commission or agency during the time set aside during any meeting of any such body for public

comment shall at that time disclose their name, address, and Town of Andover public affiliation, regardless of whether said affiliation is related to the matter being addressed by the speaker.

M. Political Activity. No public official or public employee may require or request, or authorize any other public official or public employee to require or request that any subordinate official or employee of the Town actively participate in an election campaign or make a political contribution. No public official or public employee may engage in any political activity while on duty for the Town, or with the use of Town funds, supplies, vehicles or facilities. Political activity includes voting, making political contributions, buying a ticket to fund raising or other political events, taking an active role in connection with a question such as a referendum or approval of a municipal ordinance, or any other question or issue of a similar character, and otherwise participating in political affairs, endorsing or opposing any candidate for public office, taking any part in managing the political campaign of any such candidate; or initiating or circulating a nomination petition, working as a driver transporting voters to the polls during an election, or directly soliciting receiving, collecting, handling, disbursing or accounting for assessments, contributions or other funds for any such candidate; placing or wearing a sign or sticker supporting or opposing a candidate for any public office, or becoming or acting as a candidate for any public office. No Andover voter may be prohibited from voting at any Town Meeting based on his or her status as a public official or public employee. Activity legally authorized by Connecticut General Statutes Section 9-369b regarding the preparation, printing and dissemination of certain explanatory materials pertaining to referendum proposals and questions is exempt from restriction.

8. POWERS AND DUTIES. COMPLAINTS AND INVESTIGATIONS.CONFIDENTIALITY.

A. Upon the complaint of any person on a form prescribed by the Board of Ethics, signed under penalty of false statement, or upon its own complaint, the Board of Ethics shall investigate any alleged violation of this Code. Unless and until the Board of Ethics makes a finding of a violation, a complaint alleging a violation of this Code shall be confidential except upon the request of the respondent.

B. (1) No later than ten (10) days after the receipt or issuance of such complaint, the Board shall provide notice of such receipt or issuance and a copy of the complaint by registered or certified mail to any respondent against whom such complaint is filed, and shall provide notice of the

receipt of such complaint to the complainant. (2) The Board of Ethics shall review and investigate the complaint to determine whether the allegations contained therein constitute a violation of any provision of the Code. This investigation shall be confidential except upon the request of the respondent. If the investigation is confidential, any allegations and any information supplied to or received from the Board of Ethics shall not be disclosed to any third party by a complaint, witness, designated party, or Board of Ethics member.

C. (1) In the conduct of its investigation of an alleged violation of this Code, the Board of Ethics shall have the power to hold investigative hearings, administer oaths, examine witnesses, receive oral, documentary and demonstrative evidence, subpoena witnesses and require by subpoena duces tecum the production for examination by the Board of any books and papers which the Board deems relevant in any matter under investigation. In the exercise of such powers, the Board may use the services of the police, who shall provide the same upon the request of the Board. Any such subpoena is enforceable upon application to the Superior Court. (2) If any such investigative hearing is scheduled, the Board of Ethics shall consult forthwith with the town attorney or outside counsel authorized by Section 7 of this Code. The respondent shall have the right to appear, to be represented by legal counsel and to examine and cross-examine witnesses.

D. (1) If, after investigation, the Board of Ethics determines that the complaint does not allege sufficient facts to constitute probable cause of violation, the Board shall dismiss the complaint. The Board shall inform the complainant and the respondent of its finding of dismissal by registered or certified mail not later than three business days after such determination of dismissal. (2) After any such finding of no violation, the complaint and the record of its investigation shall remain confidential, except upon the request of the respondent. No complainant, witness, designated party, or Board of Ethics or staff member shall disclose to any third party any information learned from the investigation, including knowledge of the existence of a complaint, which the disclosing party would not otherwise have known.

E. (1) If, after investigation, the Board of Ethics determines that the complaint alleges sufficient acts to constitute probable cause of any violation, then the Board shall send notice of said finding of probable cause to the complainant and respondent by registered or certified mail within three business days and a fix date for the hearing on the allegations of the complaint to begin no later than thirty (30) calendar days after said issuance of notice, the hearing date regarding any complaint shall be not more than sixty (60) calendar days after the filing of the complaint. (2) If any such hearing is scheduled, the Board of Ethics shall consult forthwith with the town attorney or outside counsel authorized by Section 7 of this Code.

F. (1) A hearing conducted by the Board of Ethics shall not be governed by formal rules of evidence. The respondent shall have the right to appear, to be represented by legal counsel and to examine and cross-examine witnesses. Any such hearing shall be closed to the public unless the respondent requests otherwise. (2) In the conduct of its hearing of an alleged violation of this code, the Board of Ethics shall have the power to administer oaths, examine witnesses, receive oral, documentary and demonstrative evidence, subpoena witnesses and require by subpoena duces tecum the production for examination by the Board of Ethics of any books and papers which the Board deems relevant in any matter under investigation or in question. In the exercise of such powers, the Board may use the services of the police, who shall provide the same upon the request of the Board. Any such subpoena is enforceable upon application to the Superior Court.

G. (1) If, after a hearing on a complaint for which probable cause has previously been found, the Board of Ethics finds by a vote of a least two of its members based on clear and convincing evidence that any violation of this Code of Ethics has occurred, the Board shall submit a memorandum of decision, which may include recommendations for action, to the Board of Selectmen, Town Administrator and any other appropriate Town agency for such action as they may deem legal and appropriate. (2) The Recommendations of the Board of Ethics may include, but not limited to, any combination of the following: recusal, reprimand, public censure, termination or suspension of employment, removal or suspension from appointive office, termination of contractual status, or the pursuit of injunctive relief. No such recommendation may be acted upon in violation of federal or state law or the Charter, ordinances, legally adopted policies, or collective bargaining agreements of the Town of Andover. Any discussion by the Board of Selectmen or other Town agency regarding any such memorandum of decision shall be in executive session subject to the requirements of the State law, unless the affected individual requests that such discussion be held in open session.

H. The Board of Ethics shall make public any finding of a violation not later than five business days after the termination of the hearing. At such time, the entire record of the investigation shall become public. The Board of Ethics shall inform the complainant and the respondent of its findings and provide them a summary of its reasons for making such finding by registered or certified mail not later than three business days after termination of the hearing.

I. No complaint may be made under this Code except within two years of the date of knowledge of the alleged violation, but no more than four years after the alleged date of any such violation.

J. No person shall take or threaten to take official action against an individual for such individuals good faith disclosure of information to the Board of Ethics under the provisions of this Code. After receipt of information from an individual, the Board of Ethics shall not disclose the identity of such individual without his consent unless the Board determines in the interest of justice that such disclosure is unavoidable during the course of an investigation or hearing.

9. FORMER PUBLIC OFFICIALS/EMPLOYEES.

A. No former public employee or public official, as defined in Section 4 of this Code, shall appear for compensation before any Town of Andover Board, Commission, or Agency in which they were formerly employed or involved at any time within a period of one year after termination of their service with the Town.

B. No such former public employee or public official shall represent anyone other than the Town of Andover concerning any particular matter in which they participated personally and substantially while in the service of the Town.

C. No such former public employee or public official shall disclose or use confidential information acquired in the course of and by reason of their official duties in the service of the Town of Andover, for financial gain for himself or herself or others.

D. No such former public employee or public official who participated substantially in the negotiation or award of a Town of Andover contract obliging the Town to pay \$100,000.00 or more, or who supervised the negotiation or award of such a contract shall accept employment with a party to the contract other than the Town of Andover for a period of one year after such contract is finally executed.

10. DISTRIBUTION OF CODE OF ETHICS.

Copies of this Code of Ethics shall be made available to the Town Clerk for filing and to the Town Clerk and Town Administrator for distribution. The Town Clerk shall cause a copy of this Code of Ethics to be distributed to every public official of the Town of Andover within thirty days of the effective date of this Code or any amendment thereto. The Town Administrator shall cause a copy of this Code of Ethics to be distributed to every employee of the Town of Andover within thirty days of the effective date of this Code or any amendment thereto. Each

new public employee and public official shall be furnished a copy of this Code before entering upon the duties of their office or employment.

11. SEVERABILITY; CONFLICTS WITH OTHER PROVISIONS.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this ordinance, or any other part thereof, is for any reason held to be unconstitutional, invalid or ineffective by any court of competent jurisdiction such decision shall not affect the validity or effectiveness of the remaining portions of this chapter. Furthermore, should any such provisions of this chapter conflict with any provisions of state or federal law, the applicable portions of the state or federal law shall prevail.

VETERANS MEMORIAL SIGNAGE ORDINANCE.

05-02

No signage shall be allowed on the Veterans Memorial at Route 6 and Route 316 except town erected signage to identify the Veterans Memorial.

Passed at Selectmen's Meeting August 3, 2005.

Published September 2, 2005 in the Journal Inquirer.

Ordinance becomes effective 21 days after publication.

Revised Selectmen's Meeting September 1, 2010.

Published April 8, 2011 in the Rivereast.

Revised Ordinance becomes effective 21 days after publication.

EXEMPTION FOR AMBULANCE-TYPE AND MODIFIED HANDICAP ACCESSIBLE VEHICLES.

01-06

Section 1 - Exemption Granted.

In accordance with the provisions of Section 12-81c of the Connecticut General Statutes, the Town of Andover authorizes and directs the Assessor to exempt from personal property taxation:

- A. Commencing with the October 1, 2006 Grand List, any ambulance-type motor vehicle which is used exclusively for the purpose of transporting any medically incapacitated individual, except such vehicle used to transport any such individual for profit; and
- B. Commencing with the October 1, 2006 Grand List, any motor vehicle owned by a person with disabilities, or owned by the parent or guardian of such person, which vehicle is equipped, after its original manufacture, for the purpose of adapting its use to the disability of such person (such vehicle shall be known as a "modified handicap accessible vehicle" as further defined in Section 2).

Section 2 – Qualifying Vehicle Modifications

- A. For the purpose of this article vehicle modifications or adaptations qualifying a vehicle as a modified handicap accessible vehicle shall include but not be limited to:
 - (1) Wheelchair or scooter loaders which mount on the roof, in the passenger area or in the trunk or other storage areas of a motor vehicle; or
 - (2) Any automotive adaptive control device which is installed in the motor vehicle and includes any mechanical or electrical device added to the standard motor vehicle to enable an individual with mobility restrictions to control the accelerator, floor brake, turn signals, dimmer switch, steering wheel and/or parking brake.
- B. The Assessor shall determine whether modifications not specifically listed in this section qualify the vehicle under this definition.

Section 3 – Proof Required Annually; Consequences of Failure to Provide.

An owner of such vehicle must show proof annually to the Assessor that the vehicle meets the criteria listed in Section 2A (1) or (2) above. Such proof must be submitted prior to 90 days from the date in which the tax was due. Failure to provide the required proof within the time limit prescribed shall be a waiver to the right to such exemption in that year.

Passed by Selectmen's Meeting June 24, 2006.

Published June 30, 2006 in the Rivereast.

Ordinance becomes effective 21 days after publication.

ORDINANCE PROHIBITING THE STORAGE, DISPOSAL OR USE OF WASTE FROM OIL AND GAS EXPLORATION ACTIVITIES OR ANY DERIVATIVE THEREOF, IN THE TOWN OF ANDOVER, CT

01-16

Section 1. Prohibitions.

1. The application of natural gas waste or oil waste, whether or not such waste has received Beneficial Use Determination or other approval for use by DEEP (Department of Energy & Environment Protection) or any other regulatory body, on any road or real property located within the Town for any purpose is prohibited.

2. The introduction of natural gas waste or oil waste into any wastewater treatment facility within or operated by the Town is prohibited.

3. The introduction of natural gas waste or oil waste into any solid waste management facility within or operated by the Town is prohibited.

4. The storage, disposal, sale, acquisition, handling, treatment and/or processing of waste from natural gas or oil extraction is prohibited within the Town.

Section 2. Provision to be included in bids and contracts related to the construction or maintenance of publicly owned and/or maintained roads or real property within the Town.

1. All bids and contracts related to the purchase or acquisition of materials to be used to construct or maintain any publicly owned and/or maintained road or real property within the Town shall include a provision stating that no materials containing natural gas or oil waste shall be provided to the Town.

2. All bids and contracts related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the Town shall include a provision stating that no materials containing natural gas or oil waste shall be utilized in providing such a service.

3. The following statement, shall be a sworn statement under penalty of perjury, shall be included in all bids related to the purchase or acquisition of materials to be used to construct or maintain any publicly owned and/or maintained road or real property within the Town and all bids related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the Town:

"We _____ hereby submit a bid for materials, equipment and/or labor for the Town of Andover. The bid is for bid documents titled _____. We hereby certify under penalty of perjury that no natural gas waste or oil waste will be used by the undersigned bidder or any contractor, sub-contractor, agent or vendor agent in connection with the bid, nor will the undersigned bidder or any sub-contractor, agent or vendor agent thereof apply any natural gas waste or oil waste to any road or real property, with the Town of Andover as a result of the submittal of this bid selected."

Section 3. Penalties.

This ordinance shall apply to any and all action occurring on or after the effective date of this ordinance. The Town is empowered to issue "Cease and Desist" orders in case of any violation of the Prohibitions and Provisions stated above in Sections 1 and 2. It is further empowered to require remediation of any damage done to any land, road, building, aquifer, well, water course, air quality or other asset, be it public or private, within the Town of Andover. *Pursuant to Connecticut General Statutes section 7-148 (c)(10), no later than forty-five days following the effective date of this ordinance, the Board of Selectmen is required to enact a schedule of penalties and system of enforcement of same for any violation of this ordinance.*

Section 4. Effective Date.

Within ten (10) days after the final passage, the ordinance shall be published in its entirety in a newspaper having circulation within the Town. It shall become effective on the twenty-first (21) day after such publication following its final passage.

Section 5. Definitions>

1. As used in this Ordinance the term "hydraulic fracturing" shall mean the fracturing of underground rock formations, including shale and non-shale formations by manmade fluid

driven techniques for the purpose of stimulating oil, natural gas, or other subsurface hydrocarbon production.

2. As used in this Ordinance the term "natural gas extraction activities" shall mean all geologic or geophysical activities related to the exploration for or extraction of natural gas, including, but not limited to, core and rotary drilling and hydraulic fracturing.

3. As used in this Ordinance the term "oil extraction activities" shall mean all geologic or geophysical activities related to the exploration for or extraction of oil, including, but not limited to, core and rotary drilling and hydraulic fracturing.

4. As used in this Ordinance the term "natural gas waste" shall mean:

a. any liquid or solid waste or its constituents that is generated as a result of natural gas extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals, or other contaminants;

b. leachate from solid wastes associated with natural gas extraction activities;

c. any waste that is generated as a result of or in association with the underground storage of natural gas;

d. any waste that is generated as a result of or in association with liquefied petroleum gas well storage operations; and

e. any products or by products resulting from the treatment, processing or modification of any of the above wastes.

f. As used in this Ordinance the term "oil waste" shall mean:

g. any liquid or solid waste or its constituents that is generated as a result of oil extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals or other contaminants;

h. leachate from solid wastes associated with oil extraction activities; and

i. any products or byproducts resulting from the treatment, processing or modification of any of the above wastes.

j. As used in this Ordinance the term "application" shall mean the physical act of placing or spreading natural gas waste or oil waste on any road or real property located within the Town of Andover.

k. as used in this Ordinance the term "Town" shall mean the Town of Andover.

Published October 14, 2016 in the Rivereast.

Ordinance becomes effective 21 days after publication.

ORDINANCE REGARDING RESIGNATION AND REPLACEMENT OF ANY TOWN OFFICIAL

01-21

This Ordinance totally repeals and replaces the “Minor Ordinance Regarding Resignation and Replacement of any Town Official” enacted June 8, 2020 by the Board of Selectmen.

1. As set forth in General Statutes section 7-103, any elected or appointed Town official desiring to resign from such office shall submit their resignation in writing to the Town Clerk, effective on submission, or on the date specified in writing.
2. Any such resignation may be effectuated by electronic transmission to the Town Clerk from the resigning official, or via the Chair of the proper board, commission or political party committee of the resigning official, effective when the Clerk reasonably confirms its authenticity or on the date specified by the resigning official in their writing.
3. Any board, commission or local political party Chair who receives a resignation from any board or commission by letter or electronic communications from any member of any such unit the Chair must provide a copy of the same to the Town Clerk forthwith.
4. The Town Clerk shall immediately notify the First Selectman and Chair of the affected board or commission and of any local political party of the resignation and vacancy.
5. Any applicant to fill any interim vacancy on any Town board or commission must submit in writing or by electronic means to the Town Clerk a letter of interest, and any such letter shall be provided forthwith to the appropriate board or commission or political party Chair by the Clerk, and also made available for public inspection before any meeting to consider filling the vacancy is noticed and held by any board or commission.
6. If any action to replace an elected official who has resigned or is deceased appears on the agenda of any Town board or commission, the agenda item must specify the names of any candidates the board or commission is considering to fill any such vacancy.
7. Per General Statutes section 1-2000(6)(A), candidate interviews if any shall be in public session, discussion of candidate suitability shall be in executive session unless all candidates agree otherwise, and voting to fill any vacancy shall be in public session.

Approved at September 28, 2021 Special Town Meeting.

TOWN OF ANDOVER EVENT AND USE OF TOWN PROPERTY ORDINANCE

02-21

Title: This Ordinance shall be known and may be referred to as the "Event and Use of Town Property Ordinance."

Legislative Authority: Connecticut General Statutes section 7-148, et seq., and especially subsection 7-148 (c)(10)(A).

Findings and Purposes: The Board of Selectmen of the Town of Andover finds that the Recreation Commission of the Town permits persons and entities to benefit from the promotion, management and implementation of events such as foot races in Town, pursuant to specific rules and regulations set forth in a one page form entitled "**Town of Andover Permit for Use of Town Property**" and the two page "**TOWN OF ANDOVER EVENT PERMIT**," prominently displayed on portions of the Town of Andover website entitled "**Recreation Commission**" and "**How Do I...**"

The purpose of these forms and the rules and regulations they include is to promote and protect the health and safety of Town residents and any visitors to the Town of Andover.

The Board of Selectmen finds that there have been instances in which persons and entities holding events in the Town on Town Property and roads have ignored or substantially failed to comply with the rules and regulations of the Recreation Commission of the Town of Andover regarding such events and the use of Town property and roads within the Town.

Written Warning: The Recreation Commission of the Town of Andover shall provide written warning by certified mail or hand delivery by a designated municipal official or employee to any person or entity known to the Commission who has engaged or is involved in the promotion, management or implementation of any such regulated event on Town of Andover property or roads that any failure to substantially comply with the rules and regulations set forth in the enclosed aforementioned forms entitled "**Town of Andover Permit for Use of Town Property**" and the "**TOWN OF ANDOVER EVENT PERMIT**," shall result in a fine of **TWO HUNDRED AND FIFTY DOLLARS (\$250.00)** for every such offense and a ban on any such participation in any such event in the Town of Andover for a period of six months from the date of any such violation.

Enforcement: Any such violation of said rules and regulations following receipt of any such warning or similar written warning by the Town at any time shall result in the foregoing fines and penalties implemented by citation delivered by a properly designated official or employee of the Town.

Appeal: Any such citation may be appealed pursuant to the Town of Andover **Hearing Procedure for Citations Ordinance**.

Approved at September 28, 2021 Special Town Meeting.

BLIGHT ORDINANCE

04-21

Section 1.1 Purpose: The purpose of this ordinance, adopted pursuant to Connecticut General Statutes Sections 7-148 (c) (7)(e), 7-148 (c)(10)(a), 7-148aa and 7-152c is to **repeal, replace and enhance the Town of Andover Abandoned Property Blight Ordinance enacted in 2017**, define, prohibit and provide for abatement and remedy of blight on Town of Andover premises to preserve the public health, safety and welfare, and to protect property values in the Town of Andover.

Section 1.2 Repeal and Replacement; Scope: This Ordinance repeals and replaces in its entirety the Town of Andover Abandoned Property Blight Ordinance enacted in 2017. This ordinance applies to any parcel of land in the Town of Andover.

Sections 1.3 Definitions: The following definitions apply in the interpretation and enforcement of this ordinance:

A. **BLIGHT OR BLIGHTED.** Includes any of the following:

1. Abandoned premises, buildings structures and premises for which an owner cannot be identified or located by dispatch of a certificate of mailing to the last known or registered address, which persistently or repeatedly become unprotected or unsecured; which have been occupied by unauthorized persons or for illegal purposes; or which present a danger of structural collapse or fire spread to adjacent properties shall be considered abandoned, declared unsafe and abated or demolished in accordance with Connecticut State Building Code 117.1.1 ;

2. Temporarily unoccupied buildings, structures, premises or portions there of that are not secured in accordance with section 117.1.2. of the Connecticut State Building Code;

3. Buildings whose exterior openings and interior openings accessible to other tenants or unauthorized persons are not boarded, locked, blocked or otherwise protected to prevent entry by authorized individuals in accordance with Connecticut State Building Code 117.2.1;

4. A structure that is dilapidated or decayed and which presents a hazard to the public, including danger or structural collapse or fire spread to adjacent properties or open pits or trenches.

5. Dead, decayed, diseased or damaged trees constituting a hazard or danger to person or property;

6. Premises containing accumulated debris, not including compost piles or piles of grass and brush which are not visible from a public right of way and do not otherwise constitute a public health or safety hazard.

B. DEBRIS. Material which is incapable or immediately performing the function for which it was designed including, but not limited to, abandoned, discarded or unused objects, junk comprised of equipment such as automobiles, boats and recreational vehicles which are unregistered and missing parts, not complete in appearance and in an obvious state of disrepair; parts of automobiles, furniture, appliances, cans, boxes, scrap metal, tires, batteries, containers, trash and garbage which are in the public view;

C. DECAY OR DECAYED. A wasting or wearing away; a gradual decline in strength, soundness or quality; decomposed, decayed or rotten, except as to a contained compost pile.

D. DILAPIDATED. Decayed beyond reasonable repair.

E. OWNER. Any natural or legal person having an ownership interest in premises or structures that are subject to this ordinance. "Owner" includes a "registrant" as defined in Connecticut General Statutes 7-148hh(1).

F. PREMISES. Any parcel of land located within the Town of Andover.

G. STRUCTURE. Any building, dwelling, shed or similar unit that is enclosed in whole or in part.

Section 1.4 Prohibition against Creation or Maintenance of Blight. Each owner of premises or any structure subject to this ordinance shall comply with its provisions and shall not cause or allow such premises or structure to become blighted or to remain in a blighted condition. These obligations exist jointly and severally upon affected owners.

Section 1.5 Minimum Standards.

A. This ordinance shall not be construed to prevent the enforcement of other statutes, codes, ordinances or regulations that prescribe standards other than are provided herein.

B. In any case where a provision of this ordinance is found to be in conflict with a provision of any zoning, building, fire, safety or health ordinance, regulation or other code of the Town or the State, the provision that establishes the higher standard for the protection, preservation and promotion of public health, safety and welfare and the preservation and protection of property values shall prevail.

Section 1.6 Designation and Authority of Blight Enforcement Officer. The Towns Zoning Enforcement Officer shall be the Blight Enforcement Officer, responsible for interpreting and enforcing this ordinance. The Blight Enforcement Officer is granted the authority necessary to enforce the provisions of this ordinance.

Section 1.7 Complaints. Notice of Violations.

A. Signed, written complaints on forms provided by the Town may be submitted to the Blight Enforcement Officer. The Blight Enforcement Officer may enforce the provisions of this ordinance without having received a signed, written complaint.

B. If the Blight Enforcement Officer determines that there has been a violation of this ordinance, the officer shall cause notice of the violation to be given to the owner or owners of the premises upon which the violation exists, as provided below. Such notice shall be sent to the owners current or last known address stated in the Tax Collectors office or, as applicable, to the registration address provided under Connecticut General Statutes 7-148ii. Such notice shall:

1. Be in writing;
2. Set forth the provision(s) of this ordinance that have been violated and the facts establishing such violation(s);
3. Specify a final date for the correction of any violation. Correction date is not to be less than fifteen (15) days and not greater than ninety (90) days;
4. Be served upon the owner by both regular first class mail and certified mail return receipt requested; and

5. State that the penalties and enforcement provisions of this ordinance will become effective on the final date for correction of any violation, including any extension(s) thereof.

C. The Blight Enforcement Officer is required to issue only one notice of violation, even though there are multiple violations and even though the same violation may exist for multiple days.

Section 1.8 Extension (s) of Correction Period. Prior to the expiration of the correction period specified in the notice of violation, the owner of the premises receiving a notice may apply in writing to the Blight Enforcement Officer or an extension of the correction period. The Blight Enforcement Officer may in writing grant an extension of the correction period of no more than thirty (30) days if the officer determines that the owner is diligently working to remedy the blighted condition and that under the facts and circumstances an extension is reasonable. The Blight Enforcement Officer may provide one or more subsequent extensions only upon the approval of the Town Administrator.

Sections 1.9 Citations. Penalties. Hearings.

A. If the blight condition is not corrected to the Blight Enforcement Officers satisfaction by the conclusion of the final correction date, including any extension(s) thereof, the Blight Enforcement Officer shall issue a citation, which shall include the penalties set forth in this ordinance. The Blight Enforcement Officer is required to issue only one citation, even though there may be multiple violations that exist for multiple days.

B. Each violation of this ordinance shall be considered a separate municipal offense, and each separate offense shall be subject to a penalty of \$25 per day, commencing at the expiration of any extensions granted by the Blight Enforcement Officer or the Town Administrator, payable to the Town of Andover.

C. If the Town has adopted its own Hearing Procedure for Citations Ordinance authorized by Connecticut General Statutes Section 7-152c, that ordinance shall constitute the official hearing procedure for citations issued under this ordinance and must be adhered to by the Town. If no such ordinance is in place, unless and until one is enacted, in lieu of such an ordinance the Town hereby adopts the hearing procedures fully set forth in Connecticut General Statutes Section 7-152c, as amended, as its hearing procedure for citations issued under this ordinance.

D. As authorized by Connecticut General Statutes Section 7-148aa, any unpaid penalty imposed on the owner of a blighted property pursuant to this ordinance shall constitute a lien on the real estate against which the penalty was imposed from the date of such penalty. Each such lien may be continued, recorded and released in the manner provided by the General

Statutes for continuing, recording and releasing property tax liens. Each such lien shall take precedence over all other liens filed after July 1, 1997, and encumbrances except taxes and may be enforced in the same manner as property tax liens.

Section 1.10 Appointment of Citation Hearing Officer. Either under this ordinance or pursuant to a Section 7-152c Hearing Procedure for Citations Ordinance if one is or becomes enacted and in place, the Town Administrator shall appoint one or more citation hearing officers to conduct the hearings provided by Section 1.9 C of this ordinance. Neither the Blight Enforcement Officer nor any Town employee shall be appointed as a citation hearing officer under this ordinance.

Approved at September 28, 2021 Special Town Meeting.

HEARING PROCEDURE FOR CITATIONS ORDINANCE

21-05

Section 1: Title.

This Ordinance shall be known and may be cited as the Town of Andover "Hearing Procedure for Citations Ordinance."

Section 2: Legislative Authority.

This Ordinance is enacted pursuant to Sections 7-148(c)(10)(a) and 7-152c of the Connecticut General Statutes.

Section 3: Intent.

This Ordinance is designed to establish a hearing procedure for the appeal and enforcement of fines, penalties, costs and fees for citations issued for violations of Town Ordinances.

Section 4: Appointment of Hearing Officers.

The Town Administrator shall appoint one or more persons who are electors of the Town of Andover to serve as citation hearing officers to conduct hearings regarding the violation of Town ordinances. No police officer, or any Town employee or person authorized to issue

citations for the violation of any Town Ordinance shall be permitted to serve as a citation hearing officer.

Section 5: Notice of Violation.

At any time within twelve months from the expiration of the final period for the uncontested payment of fines, penalties, costs or fees for any citation issued under any Town Ordinance for a violation thereof, the Town shall send notice to the cited person. Such notice shall inform the cited person:

A. Of the allegations against the cited person(s) and the amount of the fines, penalties, costs or fees due;

B. That the cited person may contest liability before a hearing officer appointed by the Board of Selectmen by delivering in person or by mail written notice of demand for a hearing to the office of the Town Administrator at the Andover Town Hall within ten days of the date thereof;

C. That if a hearing is not so demanded, an assessment and judgment shall be entered against the cited person; and

D. That such judgment may issue without further notice. For purposes of this section, notice shall be presumed to have been properly sent if such notice was mailed to such persons last known address on file with the tax collector or collector of revenue.

Section 6: Admission of Liability.

If a cited person who is sent notice pursuant to Section 5 wishes to admit liability for an alleged violation, the cited person may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees in person or by mail to the Town Treasurer at the address specified in the notice. Such payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of the cited person or other person making the payment. Any cited person who does not deliver or mail written notice of demand for a hearing within ten days of the date of the noticed provided for in Section 5, above, shall be deemed to have admitted liability and the Town Administrator shall certify such persons failure to respond to the hearing officer. The hearing officer shall thereupon enter and assess the fines, penalties, costs or fees provided for by the applicable ordinance and shall follow the procedures set forth in Section 7, below.

Section 7: Hearing Procedure.

A. Any cited person who requests a hearing shall be given written notice of the date, time and place of the hearing. Such hearing shall be held not less than fifteen days nor more than thirty

days from the date of the mailing of such notice, provided the hearing officer shall grant upon good cause shown, any reasonable request by any interested party for postponement or continuance. An original or certified copy of the initial notice of violation issued by the issuing municipal agent or employee shall be filed and retained by the Town, be deemed to be a business record within the scope of the General Statutes Section 52-180, and be evidence of the facts set forth therein. At the request of the cited person the presence of the issuing municipal officer or employee shall be required at the hearing. A designated Town official other than the hearing officer may present evidence on behalf of the Town of Andover. A person wishing to contest their liability shall appear at the hearing and present evidence in their own behalf.

B. If the cited person fails to appear and such appearance has not been determined by the hearing officer to be unnecessary, the hearing officer may enter an assessment by default against the cited person upon a finding or proper notice and liability under the applicable ordinance. The hearing officer may accept from the cited person copies of written statements, police reports, investigatory and citation reports and other official documents by mail or hand delivery, and may determine thereby that the appearance of such person is unnecessary. The hearing officer shall conduct the hearing in the order and form and with such methods of proof as the hearing officer deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation. The hearing officer shall announce a decision at the end of the hearing. If the hearing officer determines that the cited person is not liable the matter shall be dismissed and the decision of the hearing officer entered in writing accordingly. If the hearing officer determines that the cited person is liable for the violation, said officer shall forthwith enter and assess the fines, penalties, costs or fees against the cited person as provided by the applicable ordinance.

Section 8: Notice of Assessment and Judgment.

If such assessment is not paid on the date of its entry, the hearing officer shall send by first class mail a notice of the assessment to the cited person found liable and shall file, not less than thirty days nor more than twelve months after such mailing, a certified copy of the notice of assessment with the clerk of the appropriate court, together with the appropriate entry fee required by the court which is currently eight dollars per General Statutes Section 7-152c(f). The certified copy of the notice assessment shall constitute a record of assessment. Within such twelve month period, assessments against the same cited person may be accrued and filed as one record of assessment. The clerk shall enter judgment in the amount of said record of assessment and court costs against the cited person, in favor of the Town of Andover. Notwithstanding any other provision of the Connecticut General Statutes, the hearing officers

assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution on such judgment may issue without further notice to such cited person.

Section 9: Appeal.

A cited person against whom an assessment has been entered pursuant to this ordinance is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty days of the mailing of notice of such assessment by filing a petition to open assessment, together with an entry fee in an equal amount to the entry fee for a small claims case pursuant to General Statutes Section 52-259, at the appropriate court, which shall entitle the cited person to a hearing in accordance with the rules of the judges of the Superior Court.

Section 10: Other Remedies.

No action taken pursuant to this Ordinance shall preclude the Town Administrator from pursuing other enforcement remedies, either in addition to those specified in this Ordinance or separately in order to achieve lawful compliance with the ordinances of the Town of Andover.

Approved at September 28, 2021 Special Town Meeting.

ZONING VIOLATION ORDINANCE

24-01

Section 1: Title.

This ordinance shall be known and may be cited as the Town of Andover Zoning Violation Ordinance.

Section 2: Legislative Authority.

This ordinance is enacted pursuant to Sections 8-2, 8-12a and 7-152c of the Connecticut General Statutes.

Section 3: Intent.

The purpose of this ordinance is to better ensure compliance with the Zoning Regulations of the Town of Andover. In furtherance of this purpose, this ordinance is designed to establish fines for violations of the Zoning Regulations of the Town of Andover authorized by sections 8-2 and 8-12a of the Connecticut General Statutes and a hearing procedure pursuant to General Statutes Section 7-152c for the appeal and enforcement of such fines.

Section 4: Appointment of Hearing Officers.

The Town Administrator may appoint one or more persons who are electors of the Town of Andover to serve as a zoning violation hearing officer to conduct hearings regarding alleged violation of the zoning regulations. No zoning agent or zoning enforcement officer, building inspector or employee of the municipal body exercising zoning authority may be appointed to be a zoning violation hearing officer.

Section 5: Notice of Violation.

The zoning agent is authorized to issue citations for any violation of the Zoning Regulations of the Town of Andover as follows:

A. Notification

Upon determination of violation, the zoning agent shall provide notice by first class mail with certification of mailing as a minimum, to any person occupying owning or otherwise in control of the subject property on which the violation exists, or in the case of a business use, the owner or operator or manager of the business. Such notice of violation shall state the violations the date by which the violation must be remedied, and the fact that a fine of thirty dollars (\$30.00) will be imposed for each day of violation subsequent to the date by which the violation must be remedied. Such date shall not be less than ten (10) days after the date of verifiably completed service of the notice or twenty (20) days after it is sent, whichever is the latest. Upon failure to remedy the violation within the stated time, the zoning agent may issue a citation provided for in subsection B, below. If the person in control of the property is not the owner of record, the zoning agent may also provide notice to such owner in the same manner.

B. Citation

If such violation persists notwithstanding any such violation, the zoning agent may thereupon issue a citation. Such citation shall be served by first class mail with certification of mailing as a minimum upon

every person named therein and shall cite this ordinance, specify the violation(s) and the fine(s) within thirty (30) days of the verifiably completed service after it is sent, whichever is the latest. The zoning agent shall retain a copy of each citation, certified to be a true copy of the original thereof by the clerk of the Town of Andover.

Section 6: Fine for Violation.

The fine that may be imposed for any such violation of the Zoning Regulations shall be thirty (\$30.00) dollars per day for each day a violation continues, payable to the treasurer of the Town of Andover.

Section 7: Failure to Respond; Judgment.

At any time within twelve months from the expiration of the final period for the uncontested payment of fines set forth in Section 5B, above, the zoning agent may send notice by first class mail with certification of mailing as a minimum, to any such person cited, informing such person(s):

- A. of the allegations against the cited person(s) and the amount of the fine(s) due;
- B. that any cited person may contest liability before a hearing officer appointed by the Town Administrator by delivering in person or by mail written notice of demand for a hearing to the office of the Town Administrator at the Andover Town Hall within fifteen (15) days of the date thereof;
- C. that if a hearing is not so demanded, an assessment and judgment shall be entered against the cited person; and
- D. that such judgment may issue without further notice.

Section 8: Admission of Liability.

If a person who is sent notice pursuant to Section 7 wishes to admit liability for an alleged violation, the cited person may, without requesting a hearing, pay the full amount of the fine(s) in person or by mail to the Town Treasurer at the address specified in the notice. Any cited person who does not deliver or mail written notice of demand for a hearing within fifteen (15) days of the first noticed provided for in Section 7, above, shall be deemed to have admitted responsibility and the office of the Town Administrator shall certify such persons failure to respond to the hearing officer. The hearing officer shall thereupon enter and assess the fine(s) and shall follow the procedures set forth in Section 9B, below.

Section 9: Hearing Procedure.

A. Any cited person who requests a hearing shall be given written notice of the date, time and place of the hearing. Such hearing shall be held not less than fifteen (15) days nor more than thirty (30) days from the date of the mailing of such notice, provided the hearing officer shall grant upon good cause shown, any reasonable request by any interested party for postponement or continuance. An original or certified copy of the initial notice of violation issued by the zoning agent shall be filed and retained by the Town, be deemed to be a business record within the scope of General Statutes Section 52-180, and be evidence of the facts set forth therein. The zoning agent or the zoning agents designee shall appear and present evidence on behalf of the Town of Andover. A person wishing to contest their liability of their designee shall appear at the hearing and present evidence in their own behalf.

B. If the cited person or their designee fails to appear, the hearing officer may enter an assessment by default against the cited person upon a finding of proper notice and liability under the applicable zoning regulation(s). The hearing officer may accept from the cited person or their designee copies of written statements, police reports, investigatory and citation reports, and other official documents by mail or hand delivery and may determine thereby that the appearance of such person is unnecessary. The hearing officer shall conduct the hearing in the order and form and with such methods of proof as the hearing officer deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation. The hearing officer shall announce a decision at the end of the hearing. If the hearing officer determines that the cited person is not liable, the matter shall be dismissed and the decision of the hearing officer entered in writing accordingly. If the hearing officer determines that the cited person is liable for the violation, said officer shall forthwith enter and assess the fine(s) against such person as provided by this ordinance.

Section 10: Notice of Assessment and Judgment.

If such assessment is not paid within three (3) business days of its entry, the hearing officer shall send by first class mail with certification of mailing as a minimum, a notice of assessment to any person found liable and shall file, not less than thirty (30) days or more than twelve (12) months after such mailing, a certified copy of the notice of assessment with the clerk of the appropriate court, which is now the Superior Court for the Judicial District of Tolland, together with the appropriate entry fee, which is now eight (\$8.00) dollars. The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve (12) month period, assessments against the same person may be accrued and filed as one record of assessment. The clerk shall enter judgment in the amount of such record of assessment and

court costs against the cited person in favor of the Town. Notwithstanding any other provisions of the Connecticut General Statutes, the hearing officers assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution of judgment lien on such judgment may issue without further notice to such person.

Section 11: Appeal.

A cited person against whom an assessment has been entered pursuant to this ordinance is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty (30) days of the mailing of notice of such assessment by filing a petition to open assessment, together with an entry fee in an equal

amount to the entry fee for a small claims case pursuant to General Statutes Section 52-259, at the appropriate court, which is now the Superior Court for the Judicial District of Tolland, which shall entitle such cited person to a hearing in accordance with the rules of the judges of the Superior Court.

Section 12: Other Remedies.

No action taken pursuant to this ordinance shall preclude the Town of Andover from pursuing other enforcement remedies, either in addition to those specified in this ordinance or separately, in order to achieve lawful compliance with the Zoning Regulations of the Town of Andover. No action or inaction shall preclude any cited person whose case is being processed per this ordinance from pursuing any other legal remedy or defense in addition to those set forth in this ordinance; however, subject to provisions of Connecticut General Statutes Section 8-7 allowing the possible stay or reversal of any order, requirement or decision of the zoning agent, no such pursuit by the cited person shall interfere with the processes set forth herein, absent the contrary ruling of a court of law. No fine may be assessed or enforced by the Town of Andover against any person in any instance in which the action of the zoning agent upon which such fine, assessment or enforcement action is based has been reversed by the Zoning Board of Appeals per Connecticut General Statutes Section 8-7.

Passed at Special Town Meeting April 23, 2024.

Published in the Rivereast April 26, 2024.

Ordinance becomes effective 21 days after publication.

AMMENDMENT TO "ORDINANCE REGULATIONS CONCERNING INSTALLATIONS OF DRIVEWAYS CONNECTING WITH HIGHWAYS MAINTAINED BY THE TOWN OF ANDOVER."#60-03.

Ordinance 60-03 repealed at April 23, 2024 Special Town Meeting, replaced with Ordinance 24-02.

ORDINANCE 74-02 REPEALED AT APRIL 23, 2024 SPECIAL TOWN MEETING REPLACED WITH ORDINANCE 24-02.

ORIDINANCE PROHIBITING EXCAVATION OF TOWN ROADS OR RIGHT-OF-WAYS

24-02

WHEREAS, the Board of Selectmen and Town Officials responsible for enforcement of local ordinances and regulations have become aware that the "**Ordinance Regulations Concerning Installations of Driveways Connecting with Highways Maintained by the Town of Andover,**" (#60-03), and the "**Ordinance prohibiting excavation of Town Roads or Right-Of-Ways,**" (74-02) may be honored as much in their breach as in their observance by some contractors and property owners, so in furtherance of the public services, town highways , public safety and environmental protection provisions of General Statutes Section 7-148 regarding the "**Scope of Municipal Powers**" and in conformity with Section 7-148(c)(10) regarding enforcement and penalties for violation of the same. It is hereby enacted by the Town of Andover that:

SECTION 1. The "Ordinance Regulations Concerning Installations of Driveways Connecting with Highways Maintained by the Town of Andover," (60-03), and the "Ordinance Prohibiting Excavation of the Town Roads or Rights-Of-Ways," (74-02) be **REPEALED** in their entirety and are **REPLACED AS FOLLOWS**:

SECTION 2. No person or entity shall for the purpose of constructing, installing or improving a driveway excavate, alter or change the grade of any land, impede or alter any ditch or watercourse or install any bridge or culvert, or excavate for any purpose in such a manner as to in any way interfere with or endanger travel on any Town road or right-of-way within the limits of any highway maintained by the Town of Andover, except in accordance with plans and specifications approved by the Supervisor of the Town Department of Public Works or their designee, and except after receipt of a permit issued pursuant thereto by the Department.

SECTION 3. A written application to obtain a permit to excavate must be filed with the Department of Public Works including the location and plan of operation together with an outline of safety precautions to be used at the job site and such other information as the Department of Public Works may deem necessary. A fee of **ONE HUNDRED DOLLARS (\$100.00)** shall be charged for the processing of any such application by the Department. Said Supervisor or designee may refuse to approve any such plans and specifications which they believe fails to sufficiently show that the driveway to be constructed or modified in accordance therewith would not unduly interfere with the use, safety, maintenance or drainage of any Town highway.

SECTION 4. No approval shall be given and no permit issued until the applicant shall file with the Public Works Department a cash performance bond in the amount of **FIVE HUNDRED DOLLARS (\$500.00)** to ensure completion of the work according to the approved plans and specifications, and a certificate of liability insurance acceptable to the Department. Any such bond must be able to be drawn on-site from a location within the State of Connecticut, and must be in the form of cash or certified check, passbook with assignment to the Town of Andover, or approved letter of credit from a bank located in Connecticut.

SECTION 5. By acceptance of the permit, the permittee agrees to save the Town harmless from any and all costs and damages, to complete the work within the time limit specified in the permit, and to restore the area to its original or better condition. If the requirements of this Ordinance or the permit are not fulfilled such amount of said bond shall be forfeited or the permittee shall be billed as necessary to cover costs of having the work or necessary repairs completed by the Town.

SECTION 6. At least one way traffic shall be maintained at all times and protective barricades and lights approved by the Public Works Department shall be placed by the permittee as necessary to protect the public, and suitable traffic control must be maintained. After issuance of the permit the permittee shall notify the Public Works Department 24 hours before commencing the work.

SECTION 7. If the Supervisor or any other employee or official of the Public Works Department encounters any situation in which any contractor and/or contracting property owner or occupant prior to commencing any such excavation or work has failed to:

1. apply for a permit;
2. obtain a permit;
3. post a sufficient bond; or

4. in the opinion of the Public Works Supervisor or other appropriate Town Official or employee to sufficiently ensure public safety per Sections 5 & 6, above, such Supervisor, employee or official shall immediately or as soon as practicable provide written warning to any such contractor and contracting property owner or occupant that they shall immediately or with all due haste fully cease and desist from any such excavation, installation or other work noted in **section 2**, above, and likely remove all excavation equipment from the site until they are in compliance with items 1, 2, 3 and 4, above as determined by the Supervisor of Public Works or their designee or the violating contractor and property owner or occupant receiving any such warning may each be subject to citation for a penalty of **TWO HUNDRED AND FIFTY DOLLARS (\$250.00)**, or the maximum penalty permitted by General Statutes Section 7-148(c) (10) for each individual violation of the requirements of items 1, 2, 3 and 4, above, after receiving such written notice of any such violation, and failing to duly and timely comply with the requirements of any such written warning provided to them.

SECTION 8. Any Notice of Violation, Citation or Determination of Liability for a Penalty under this Ordinance may be initiated by any official or employee of the Town of Andover Department of Public Works, and appealed by any alleged offender pursuant to the Town of Andover Hearing Procedure for Citations Ordinance.

Passed at Special Town Meeting April 23, 2024.

Published in Rivereast April 26, 2024.

Ordinance becomes effective 21 days after publication.

ORDINANCE TO PERMIT CREATION AND FILLING OF ALTERNATE POSITIONS ON THE COMMISSION OF AGING OF THE TOWN OF ANDOVER BY THE COMMISSION ON AGING

24-03

WHEREAS, at the Town Meeting of the Town of Andover held May 4, 1985, an initiative was passed by voice vote to create a **Commission on Aging**, consisting of five regular members with provisions that the Board of Selectmen may increase the number of such members if deemed necessary, with vacancies filled by the Board of Selectmen; and

WHEREAS, no legal provision for the appointment of alternate members to the Commission was noted or made by said Meeting, according to its minutes, or at any time thereafter; and

WHEREAS, Commission on Aging representatives recently asked the Board of Selectmen that legal provisions be made for the creation and filling of alternate member positions on the Commission on Aging; and

WHEREAS, the following proposed Ordinance is not inconsistent with Ordinances adopted at prior Town Meetings, and not conflict with the General Statutes of the State of Connecticut;

WHEREFORE, it is hereby enacted by the Town of Andover that the members of the Commission On Aging of the Town of Andover may create alternate positions on the Commission as they are deemed needed by the Commission, and fill any vacancies in any such positions as they arise by a majority vote of a quorum of those persons seated as regular members at any duly noticed Commission on Aging meeting.

Passed by Special Town Meeting April 23, 2024.

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Ordinance becomes effective 21 days after publication.